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THE GROTIAN TRADITION IN INTERNATIONAL LAW

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THE tercentenary of the death of Grotius—he died on 29 August 1645—passed almost unnoticed in the literature of international law.[1] When compared with the solemn prominence accorded twenty years before to the three hundredth anniversary of the appearance of *De Jure Belli ac Pacis*, that absence of remembrance of a life so rich in fame and achievement is significant. It coincided with a period in which international law, after having survived the fiercest assault ever made upon it, proved as yet unable to impose its authority over the essentials of the new international system.[2] At no time was it therefore more necessary than after the Second World War to sustain hope by drawing inspiration from works in which principle has asserted itself against makeshifts. It is believed that instruction of this kind may still be derived from the ideas which Grotius bequeathed to international law and which supply the key to the attraction and the influence of his treatise in the course of centuries. This is so although the principal work on which his fame rests may be faulty in its method, pretentious in its learning, and, unless it is studied with a sense of historic perspective, unreadable in the twentieth century. The object of this essay is to attempt to supply that perspective through an estimate of his teaching in the light of the enduring problems of international law. A survey of that nature is bound to show that the contribution of Grotius is more than a mere link in the evolution of thought; that there is about it a unity and a consistency which transcend its evasions and contradictions; that it is representative of the main problems with which international law has been confronted since its inception; and that, upon final analysis, the true value of his teaching is bound to assert itself over the repetitious and often uncritical adulation which has threatened to obscure the true import of his work.

Admittedly, the significance of his achievement has been, and probably will remain, a subject of controversy. Although the criticism is unlikely to reach the low level of vituperation by Rousseau,[3] and some lesser writers,[4]

[1] Professor Lee's article in *Law Quarterly Review*, 62 (1946), pp. 53–7, is a notable exception.

[2] It was with some difficulty that the authors of the Charter of the United Nations were persuaded to assign to international law a place within the scheme of the United Nations. The view is widely held that, conceived in the spirit of realism, the Charter in many respects preferred order to law.

[3] *Contrat Social*, Book I, chs. ii and iv. He reproaches Grotius with favouring tyrants and says: 'His constant way of reasoning is to establish law by reference to the facts' (ch. ii). See below, p. 45.

[4] See, e.g., Dugald Stewart's outspoken criticism expressed in his first *Dissertation on the Progress of Philosophy*, and answered by Hallam, *Introduction to the Literature of Europe* (1839), vol. iii, pp. 439 ff.

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it is by no means a relic of intolerance or of hasty reading. Thus we find a distinguished modern author referring in the following terms to the principal work of Grotius:

> 'That learned medley, *De Jure Belli ac Pacis*, which, however valuable as a first attempt to lay the foundations of International Law—and even here it is vitiated by a perpetual confusion between fact and Right—is, for all speculative purposes, a nest of sophistries and contradictions.'[1]

There is no reason to assume that he was ignorant of the fervent advocacy of Grotius's merits by writers of no mean calibre such as Sir James Mackintosh,[2] Hallam,[3] and Whewell.[4] Grotius himself, when at the close of his day he surveyed the achievements of a lifetime, may well have had his doubts. In a very real sense he was one of the greatest international figures of his age—a prodigy, almost a miracle, of learning; an intimately familiar name to all interested in religious controversy at a time when questions of religious dogma and polemics were in the very centre of public attention; a brilliant literary scholar; the acknowledged greatest exponent of the law of nations. It would be necessary to go back to Erasmus to find a figure who was as much a household name wherever learning and culture reached. But we can well understand the doubts which beset Grotius as he lay on his death-bed in the town of Rostock, in Pomerania. He was then on his return journey from Stockholm, where he had gone to tender what was in fact an enforced resignation as Swedish Ambassador to the French Court and to attempt to obtain a diplomatic appointment of comparable dignity and usefulness. No such offer materialized. There he lay, shattered in body by a storm which made his ship a total wreck, and broken in spirit, his long and varied career unfolding itself before his mind's eye. According to a report, as to the authenticity of which there has been some controversy, among his closing words there was the exclamation of despair: 'By undertaking many things I have accomplished little.'[5]

Posterity has successfully challenged that self-deprecatory judgment. Yet he may well have had reasons for his doubts, for the final estimate of his work is not so self-evident as the lavish praise often bestowed upon it may lead us to assume. This is so not because of the fact, which possibly was foremost in his mind in August 1645, that his diplomatic career was not an unqualified success. He had had to contend with difficulties which any ambassador of Sweden, then allied with France, would have had to meet at that time. For French diplomacy oscillated, with transparent unscrupulousness, between the desire to extract the maximum of help from

[1] Vaughan, *Studies in the History of Political Philosophy* (1925), vol. i, p. 22.
[2] *Discourse on the Study of the Law of Nature and Nations* (ed. of 1828), pp. 23 ff.
[3] Op. cit., vol. iii, ch. iv.
[4] See his Preface to the Abridged Translation of *De Jure Belli ac Pacis* (1853).
[5] As quoted by Knight, *The Life and Work of Hugo Grotius* (1925), p. 289.

the subsidized ally and the determination to prevent Sweden from establishing herself as a dominant power in Europe. But it is probable that he did not feel strongly about the set-backs in his diplomatic career, which for him was merely a source of livelihood. It is not even certain that international law had been or remained the centre of his interest. He was busy with the successive editions of *De Jure Belli ac Pacis*. But the mysteries of the doctrines of Atonement and of Transubstantiation were more real to him than the work on which his fame eventually rested. What affected him more deeply was the failure of his persistent efforts, through writings and otherwise, to promote the unity of the Church—a unity conceived as an aim praiseworthy in itself and as a pre-eminent instrument of peace.[1] He was not primarily a man of affairs, and his powers as negotiator were impaired rather than enhanced by the range and the conviction of his scholarship. His main literary activity—which was not in the sphere of international law but of poetry, literary criticism, religious dogma, and biblical exegesis—has proved of ephemeral value. There are very few, if any, who now draw their inspiration or knowledge from these writings.

What is perhaps more important is that the merits of that very work which has secured for him a permanent place in history are not by any means above controversy. The view is widely held that as an exposition of international law—or even as a presentation of a jurisprudential system —*De Jure Belli ac Pacis* is in many respects a somewhat superficial, hasty, and pretentious production. It is impossible to brush aside that view with astonished impatience. That monumental work is a dazzling exhibition of learning, but much of that learning creates the impression of being irrelevant. This is so not because he overwhelms the reader with a mass of ancient authorities while neglecting those nearer home. For this was the custom of the time. Witness, for instance, the way in which Machiavelli, the realist, relied almost exclusively upon the experience of antiquity. Hobbes, the atheist, devotes a substantial portion of the *Leviathan*—a secular work if ever there was one—to a discussion of the Scriptures. The principles and practice of the Greeks and Romans were used as the basis of the revival of the study of military science in the seventeenth century. This also was the case with political science and constitutional law. Neither is there more substance in the facile criticism pointing to Grotius's promiscuous reliance on what appears to the modern eye to be the exotic authority of poets, philosophers, schoolmen, scholastic writers, the Holy Scriptures and their innumerable commentators. For he is at pains to prove not only the law of nations—the evidence of which he sought in unbroken custom and the testimony of those skilled in it[2]—but also the law of nature in its diverse

[1] See below, p. 47.

[2] Book II, ch. i, § xiv. 2.

connotations. For the latter purpose it was legitimate for him to draw upon a manifold variety of opinions. The impression of irrelevancy is largely due to the ostentatiousness and prolixity in the piling up of authorities. The unwieldy mass of authorities cited from various periods other than that coeval with his own and from most diverse spheres of human thought almost seems to suggest that Grotius had never outgrown the mentality of the precocious youth who at the age of fifteen had published work to his credit and had joined a Dutch diplomatic mission to Paris, where he was greeted by the King of France as the miracle of Holland.

However, this somewhat exhibitionist learning is not limited to the method of spectacular assembling of authorities. It seems to extend to the treatise as a whole. For one-half of the work is concerned with matters which, to all appearance, have no connexion with international law. That part of the treatise includes a general jurisprudential theory of the law of property, of contract, and of reparation; in part it comprises also a general theory of constitutional law, especially in relation to such questions as sovereignty and the social contract. It may not be difficult to find an explanation—and a justification—of what thus appears to be something in the nature of a patchwork. The explanation is that as, according to Grotius, the main cause of a just war is a threatened or actual violation of a legal right[1] or the refusal of reparation, it was necessary to give an account of the substantive law which may be affected by a breach of legal duty. The explanation may appear to some far-fetched. Thus it may not be easy to see the relevance of the chapters on the rights of parents over children, of the husband over the wife, and of the master over the slave; or those on the law of wills and succession; or that on the right of sepulchre (which follows immediately upon the chapter on the right of legation). Another explanation of the somewhat patchy character of the work is the circumstance, for which there now appears to be substantial evidence,[2] that while composing it Grotius made use of a great deal of material assembled many years before in a work entitled *De Jure Praedae Commentarius*, written about 1604 in connexion with a case in which he appeared as counsel for the Dutch East India Company. Of that work, discovered in 1864 and published in 1868, only one part—*Mare liberum*—had previously been published in 1609.

To that seemingly deficient and artificial construction of the treatise there must be added a defect of method which, apparently, has no redeeming feature. That defect does not consist in the fact that it is impossible to classify Grotius as belonging to any of the accepted schools of thought in the matter of sources of international law. He is not a pure positivist

[1] Book II, ch. i, § ii.

[2] See Scott's Introduction to the translation of *De Jure Belli ac Pacis* in the 'Classics of International Law' (1925).

—a mere chronicler of events laboriously woven into a purely formal pattern of a legal system. Neither is he a naturalist pure and simple for whom an irresistible law of nature is the overriding—or the only—rule of conduct. We cannot even consider him as what is usually described as a 'Grotian' who has accomplished a workable synthesis of natural law and state practice. The fact seems to be that on most subjects which he discusses in his treatise it is impossible to say what is Grotius's view of the legal position. He will tell us, often with regard to the same question, what is the law of nature, the law of nations, divine law, Mosaic law, the law of the Gospel, Roman law, the law of charity, the obligations of honour, or considerations of utility. But we often look in vain for a statement as to what is *the* law governing the matter. Occasionally we obtain a glimpse of how useful the treatise would be if Grotius had adhered to these distinctions for the practical purpose of indicating the existing legal rule. Thus in discussing unjust causes of war he distinguishes between strictly legal obligations and those arising from generosity, gratitude, pity, or charity, which obligations must not be enforced by war any more than they can be enforced in a court of law.[1] But this is an exception rather than the rule. With regard to the crucial aspect of the work, namely, the law of war, it is often wellnigh impossible to elicit what is the law on the subject. Thus Grotius asserts the legality, under the law of nations, of killing of enemies or of devastation. But these permissive rules he qualifies by the statement that such things are permissible not for the reason that they can be done 'without violence to right conduct and rules of duty, but because among men they are not liable to punishment'.[2] It is not easy to decide whether that distinction is of legal relevance or not. Things, he says, which are permissible—i.e. lawful—may not be consistent with justice[3] (which on some occasions he identifies with honour) or with what he describes as moral justice or internal justice.[4] Yet, on the other hand, conduct though consistent with 'justice' may not be in conformity 'with goodness, with moderation, with high-mindedness'[5] or with 'equity and goodness'.[6]

There is almost a touch of levity in this indiscriminate and confusing eclecticism in the use of sources. Thus, after giving an account of the unmitigated rigours—of which he occasionally seems to approve—of the law of war in the light of actual practice, i.e. of the law of nations, he says in a passage entitled 'With what meaning a sense of honour may be said to forbid what the law permits':

'I must retrace my steps, and must deprive those who wage war of nearly all the

[1] Book II, ch. xxii, § xvi.

[2] Book III, ch. iv, § ii. 1–3. Ibid. § v. 2 ('We must not understand such a law as would free what is done from all blame, but such immunity from punishment as I have mentioned').

[3] Book III, ch. x, § i. 1.

[4] Book III, ch. xi, § ii.

[5] Book III, ch. xi, § vii.

[6] Book III, ch. iii, § xv. 1.

privileges which I seemed to grant, yet did not grant them. For when I first set out to explain this part of the law of nations I bore witness that many things are said to be "lawful" or "permissible" for the reason that they are done with impunity, in part also because coactive[1] tribunals lend to them their authority; things which, nevertheless, either deviate from the rule of right (whether this has its basis in law strictly so called, or in the admonition of other virtues), or at any rate may be omitted on higher grounds or with greater praise among men."[2]

By way of explaining[3] the meaning of the passage he quotes with approval Agamemnon's answer to Pyrrhus in Seneca's *Trojan Women*. While the latter invokes the law as laying down the victor's full power over the captive, Agamemnon's retort is that such conduct although permitted by law may be contrary to our sense of justice and therefore forbidden. Upon which Grotius's comment is that 'in this passage the sense of shame signifies not so much a regard for man and reputation as a regard for what is just and good, or at any rate for what is more just and better'. This appeal from law to justice is made, we are told, only with regard to things which are done in an unjust war though undertaken in a lawful way.[4] In such a war 'all acts which arise therefrom are unjust from the point of view of moral injustice' (*interna injustitia*). What are we to make of all this? The distinction between just and unjust wars is clear enough. Grotius repeatedly explains it in the treatise: it is a legal distinction and various legal consequences follow from it.[5] But we have not been told so far that it affects the legal quality of the acts of those engaged in an unjust war. On the contrary, Grotius asserts the opposite view.[6] What is meant by the statement that they are now to be 'deprived' of all the privileges which the author 'seems' to have granted to them? Is that denial of privileges and rights a precept of law or a dictate of morals or of the law of nature which is paramount over all? His explanation does not help us: '. . . in consequence, the persons who knowingly perform such acts, or co-operate in them, are to be considered of the number of those who cannot reach the Kingdom of Heaven without repentance.'[7] Neither does his insistence that 'true repentance . . . if time and means are adequate, absolutely requires that he who inflicted the wrong, whether by killing, by destroying property, or by taking booty, should make good the wrong done'.[8] We are thus uncertain, once more, whether we are in the realm of law or morals.

Neither should we be appreciably better off if we were to have more definite guidance on the subject, for it is possible—we are not altogether

[1] The original text uses the expression *judicia coactiva*. Possibly 'enforceable judgments' conveys more accurately the intention of the author. The quotations in the present article are taken, unless otherwise stated, from the translation of Kelsey in the 'Classics of International Law' (Carnegie Endowment for International Peace, 1925).

[2] Book III, ch. x, § i. 1.

[3] Book III, ch. x, § i.

[4] Book III, ch. x, § iii.

[5] See below, p. 38.

[6] See below, p. 39.

[7] Book III, ch. x, § iii.

[8] Ibid.

sure—that considerations of moral justice (*justitia interna*) enter the province of the ultimately binding law of nature. If it were otherwise, what is the meaning of the statement that he is now about to deprive those who wage war of nearly all the privileges which he seems to have granted them, and yet has not granted them? Nor are we always certain, in the important chapters on moderation in a just war, at what point precepts of 'goodness, moderation, and high-mindedness' merge into the relentlessly binding law of nature—a confusion which is apparent especially in the chapter on moderation in punishments, where he speaks of the precepts of 'justice and of the law of nature';[1] or when he insists that 'nature does not sanction retaliation except against those who have done wrong';[2] or when he gives expression to his desire to 'restrict the unrestrained licence of war' in the matter of devastation to 'that which is permitted by nature'[3] (although, apparently, there is little limit to it according to the law of nations). The fact is that we are often at a loss as to the true meaning which he attaches to the law of nature. It is true that he gives a seemingly exhaustive definition of the law of nature as 'a dictate of right reason which points out that an act, according as it is or is not in conformity with rational nature, has in it a quality of moral baseness or moral necessity; and that, in consequence, such an act is either forbidden or enjoined by the author of nature, God'.[4] He explains also with some clarity what is the proper evidence of the law of nature, namely, either abstract reasoning showing the necessary agreement or disagreement of a rule 'with a rational and social nature' or *a posteriori* proof by reference to general belief[5]—the kind of evidence which is mainly responsible for the dazzling exhibition of learning displayed in the treatise. But we have only to go back to the *Prolegomena* to find that the law of nature thus defined is identical with law in general as determined by the necessity to maintain the social order and by human nature in general. The law of nature, it appears from the *Prolegomena*, is the law which is most in conformity with the social nature of man and the preservation of human society—a law of nature, in its 'primary sense', which includes the duty of refraining from appropriating what belongs to others, restoration of what belongs to them, the obligation to fulfil promises, reparation of injury, and the right to inflict punishment.[6] With that natural law there is connected, as equally arising from nature, the inclination of man 'to follow the direction of a well-tempered judgment, being neither led astray by fear or the allurement of immediate pleasure, nor carried away by rash impulse'.[7] There is another kind—or consequence—of natural law which causes us to discriminate between and show preference

[1] Book III, ch. xi, § xvi. 1.
[2] Ibid., § xvi. 2.
[3] Book III, ch. xii, § viii. 1.
[4] Book I, ch. i, § x. 1.
[5] Book I, ch. i, § xii. 1.
[6] *Proleg.* 8–10.
[7] Ibid. 9.

'now to him who is more wise over the less wise, now to a kinsman rather than to a stranger, now to a poor man rather than to a man of means'.[1]

This uncertainty as to the meaning of natural law is not relieved by the fact that in both parts of the treatise—in the *Prolegomena* and in Book I—there is a significant attempt to place the law of nature upon a secular basis. The law of nature, he says in a frequently quoted passage of the *Prolegomena*,[2] 'would have a degree of validity even if we should concede that which cannot be conceded without utmost wickedness, that there is no God, or that the affairs of man are of no concern to Him'.[3] That alternative he is unwilling to accept. For such disinterestedness on the part of the Divinity is, he says, contrary both to reason and to all experience, and the duty of obedience to God follows therefore with absolute cogency. Accordingly, he concludes that in addition to the law of nature there is another source of law, namely, the will of God, to which absolute obedience is due and to which the law of nature must be attributed.[4] Similarly, when subsequently defining the law of nature, he asserts that it is 'unchangeable —even in the sense that it cannot be changed by God'.[5] For 'measureless as is the power of God, nevertheless it can be said that there are certain things over which that power does not extend. . . . Just as even God . . . cannot cause that two times two should not make four, so He cannot cause that that which is intrinsically evil be not evil.'[6] But here, once more, he retreats from his position by an ingenious piece of dialectics. It may happen, he says, that while the law of nature is unchangeable the object which it regulates has undergone a change: 'So if God should command that any one be slain, or that the property of any one be carried off, homicide or theft—words connoting moral wrong—will not become permissible; it will not be a case of homicide or theft, because the deed is done by authority of the Supreme Lord of life and property.'[7]

While he thus leaves the reader uncertain—there is no question of abandoning the position altogether—as to his determination to emancipate the law of nature from the shackles of theology, it is by no means clear that the law of nature, as used by him, invariably fulfils a humanizing function in the cause of alleviation of suffering and of progress conceived as an assertion of the liberty of man. Undoubtedly, more often than not

[1] *Proleg.* 10.
[2] Ibid. 11.
[3] Ibid.
[4] Ibid. 12.
[5] Book I, ch. i, § x. 5.
[6] Ibid. This separation of the law of nature from theology was already foreshadowed by Suarez in *De Legibus ac Deo Legislatore* (1612), Book II, ch. xiv: 'God does not, properly speaking, grant dispensations with respect to any natural precept; but He does change the subject-matter of such precepts or their circumstances, apart from which they themselves do not possess binding force. . . .' And see Troeltsch, *The Social Teaching of the Christian Churches* (English translation by Wyon), vol. ii (1931), p. 636, for an interesting comparison of Grotius's rationalism as compared with Calvin's *stat pro ratione voluntas*. And see below, p. 53, n. 1.
[7] Book I, ch. i, § x. 6.

he resorts to the law of nature as a mitigating factor, as, for instance, in the matter of the treatment of prisoners; he contrasts the more severe rules of the law of nations with the principles of the law of nature.[1] But on other occasions his conception of natural law approaches very much that of Hobbes's notion of the right of nature and of a law of nature as expressive of physical laws rather than ethical and juridical norms.[2] Most of the harshness of the law of war he deduces from the law of nature thus conceived. There are, according to it, no limits to the right to kill, to destroy, and to plunder. Thus the law of nature, though not the law of nations, permits the killing of the enemy by poison.[3] By the law of nature, though not by Mosaic law or the law of the Gospel, it is permissible to kill a person in defence of property.[4] But this is not consistent with his basic view of the law of nature as determined by the social nature of man. There is reason to believe that Grotius oscillated between these two conceptions of the law of nature and that, when in difficulty, he resorted to God for assistance. Thus while he admits that according to the law of nature a man who is in imminent danger of receiving a blow or a similar injury has the right to prevent it by killing the enemy, he denies that this is so by the law of the Gospel, which is the law of God; and he asserts that God's will is paramount in the matter: 'For God, the creator of nature, is also able to act freely outside the realm of nature, and has the right to lay down laws for us even concerning those matters which are by nature free and undetermined; even greater is His right to make obligatory what by nature is honourable, even though not obligatory.'[5] On the whole we are probably right in assuming that the most frequent use of the notion of the law of nature by Grotius is what we should describe as general principles of law arrived at by way of a generalization and synthesis of the principal systems of jurisprudence.

The treatise abounds in laborious and elaborate distinctions between diverse kinds of justice and various categories of law, but it is not always clear what object these distinctions are intended to serve. Commentators and biographers have made interesting attempts to explain these classifica-

[1] Book III, ch. xvi, § ii. 3.

[2] 'The Right of Nature, which writers commonly call jus naturale, is the liberty each man hath, to use his own power, as he will himself, for the preservation of his own nature; that is to say, of his own life; and, consequently of doing any thing, which in his own judgment, and reason, he shall conceive to be the aptest means thereto' (*Leviathan* (1651), ch. xiv); 'A Law of Nature, lex naturalis, is a precept or general rule, found out by reason, by which a man is forbidden to do that, which is destructive of his life, or taketh away the means of preserving the same; and to omit that, by which he thinketh it may be preserved' (ibid.).

[3] Book III, ch. iv, § xv. 1. There seems to be much substance, from this point of view, in Montesquieu's criticism of the manner in which Grotius referred to the law of nature as justifying the rights and cruelties of war; for, says Montesquieu, the essence of the law of nature is preservation, not destruction (*Esprit des Lois*, x. 3).

[4] Book II, ch. i, §§ xi–xiii.

[5] Book II, ch. i, § x. 1.

tions and bring them within the systematic orbit of modern terminology.[1] But there is not much in the treatise which lends itself, with any substantial accuracy, to these well-meant attempts. He distinguishes between the volitional law[2] (including statutory and, generally, positive law) and the law of nature which is unchangeable and impervious, it would seem, even to the will of God—a position which, as has been suggested,[3] he does not find it possible to maintain with uniform consistency.[4] The volitional law is divided into human and divine, the first being in turn subdivided into municipal law and the law of nations (which derives its obligatory force from the will of all nations or many nations), the latter into universal divine law and divine law peculiar to a single people.[5] Occasionally he distinguishes between the law of nations and the law of the better nations.[6] He differentiates clearly between the law of nations improperly so called, i.e. rules of private law which are common to all or some nations and which any people is entitled to change without consulting others and, on the other hand, the law of nations in the strict sense of the word which affects the mutual society of nations in relation to one another.[7]

In a different sphere he distinguishes between *jus aequatorium* (i.e. law applying in the relations of persons on a footing of equality such as citizens or allies) and *jus rectorium*[8] (i.e. law applying to relations of persons on a footing of inequality such as master and slave, or king and subject). He attaches even greater importance to the old Aristotelian distinction between expletive justice (*justitia expletrix*) which, apparently, is concerned with legal rights proper, rights to one's own, with *facultas* (which, again, he divides into private and public), and attributive justice (*justitia attributrix*) which is concerned with aptitudes (*aptitudo*)[9]—something to which a person may be entitled as a matter of 'generosity, compassion, and foresight in matters of government'. Probably this latter distinction figures more

[1] See, in particular, Westlake, *Collected Papers* (1914), pp. 39–47, and Lee, *Hugo Grotius* (Annual Lecture on a Master Mind, British Academy, 1930, Offprint), pp. 53–6.

[2] Book I, ch. i, § ix.

[3] See above, p. 8.

[4] See also, with regard to Punishments, Book II, ch. xx, § x. 1, where he points out that there is nothing strange in the fact that conduct which is permissible according to the law of nature and municipal law is forbidden by divine law 'since this is most perfect and sets forth a reward greater than human nature; to obtain this reward there are justly demanded virtues which surpass the bare precepts of nature'.

[5] Book I, ch. i, §§ xiv–xv.

[6] Book III, ch. iv, § xix. 1.

[7] See, for repeated references to that distinction, ch. viii of Book II (on such questions as acquisition of property in animals *ferae naturae* and on the law relating to islands and alluvial deposits). For a clear distinction between international law proper and *jus gentium* see Book ii, ch. viii, § i. 2: 'Hoc autem non est jus illud gentium proprie dictum; neque enim pertinet ad mutuam gentium inter se societatem, sed ad cujusque populi tranquillitatem; unde ab uno populo aliis inconsultis mutari potuit.' And see *Proleg.* 1.

[8] Book I, ch. i, § iii. 2.

[9] Book I, ch. i, §§ vii, viii. 1.

prominently in the treatise and is more consistently applied than any other. Thus, for instance, only the violation of a perfect right, of a *facultas* (as distinguished from an imperfect right, an aptitude), legitimately gives rise to a just war[1] and, generally, to enforcement by processes recognized by the law. However, on the whole the various distinctions are unhelpful for the purpose of assisting the student or the statesman in discovering what is the legal rule on the subject. There is no hierarchy of legal norms to assist the seeker after the correct rule of law. There is often little to guide us as to whether in case of conflict the law of nature (in its various and often contradictory meanings) is to prevail over the law of nations or conversely. Often it is clear enough that in Grotius's view the law of nature has yielded to the law of nations,[2] but we cannot always be sure that this is his opinion. He supplies a partial clue to the solution of the difficulty by explaining that natural law is unchangeable only with regard to matters which it expressly prohibits and enjoins, but not with respect to those which it merely permits.[3] However, this fact does not explain the various other departures from natural law. The result is that for some purposes the latter appears to act *pro foro interno* only—a kind of moral law.[4] And yet the supposedly unchangeable law of nature is claimed to be superior to God Himself. Westlake[5] summarizes the position by suggesting that according to Grotius *justitia attributrix* (distributive justice) operates in international relations as natural law and that, therefore, in this sphere there is to that extent in the Grotian system no difference between moral and legal rights. This reading of Grotius is probably unwarranted—witness, for instance, Grotius's emphatic insistence that only perfect rights given by *justitia expletrix*, which is determined also by the law of nature, are a legally justifiable reason for war[6]—but the fact that this was the interpretation put on it by a careful scholar like Westlake is symptomatic.

Somewhat similar difficulties arise in connexion with the use Grotius made of Roman law. He often treated it as evidence of the law of nature. But on occasions he was at pains to show that specific rules of Roman law found no confirmation in the law of nations[7] and could not therefore properly be

[1] See p. 37.

[2] See, e.g., Book III, ch. ii, §§ i, ii, to the effect that although according to the law of nature no one, except the heir, is bound by an act of another, this is not so according to the law of nations—with the result, *inter alia*, that the goods of subjects may be seized in respect of the debts and obligations of their rulers and states; or Book III, ch. iii, § vi, to the effect that although a declaration of war is not necessary according to the law of nature, it is required by the law of nations.

[3] Book I, ch. ii, § v. 1.

[4] See, for an analysis to the same effect, Basdevant in *Les Fondateurs du droit international* (1904), pp. 237–9, and Lee, op. cit., p. 55.

[5] Op. cit., p. 40.

[6] See below, p. 37.

[7] See, e.g., as to alluvial deposits, or islands in a river, or dried-out beds (Book II, ch. viii, § viii). And see his frequent references to the 'errors' of Roman law, e.g. in Book II, ch. xi, § xiii; Book II, ch. xvi, § xi; ibid., § xxxi.

adduced as a valid rule of international law. In general his reliance on Roman law is less frequent and less emphatic than is generally assumed.

These conspicuous defects of method are not the only feature of *De Jure Belli ac Pacis* which invites criticism. For the principal part of the treatise, namely, the presentation of the laws of war, is, on the face of it, vitiated by the abandonment of the main object which the author set himself out to achieve. That purpose, which was the humanization of the conduct of war, he expressed in the frequently quoted passage:

'Fully convinced . . . that there is a common law among nations, which is valid alike for war and in war, I have had many and weighty reasons for undertaking to write upon this subject. Throughout the Christian world I observed a lack of restraint in relation to war, such as even barbarous races should be ashamed of; I observed that men rush to arms for slight causes, or no cause at all, and that when arms have once been taken up there is no longer any respect for law, divine or human; it is as if, in accordance with a general decree, frenzy had openly been let loose for the committing of all crimes.'[1]

This was the avowed object of the treatise. Actually, in the view of many, it is a negation of that purpose. This is so not because of the fact that Grotius elaborates and defends the lawfulness of war[2] with much zeal and learning by reference to the law of nature, to history, to the law of the Gospel, and to arguments drawn from Holy Writ and the practice of the early Christians. To deny the lawfulness of war from the very outset and in all circumstances would have rendered meaningless the object of the treatise as apparently conceived by the author. What is more difficult to understand is that he seems to elevate that 'lack of restraint in relation to war, such as even barbarous races should be ashamed of' to the dignity of a rule of the law of nations. The law of nations gives the right to kill or injure all those who are in the territory of the enemy.[3] The same right is given with regard to the subjects of the enemy wherever they may be found.[4] Captives taken in war may be killed. So can those who surrender but whose surrender is not accepted.[5] Water may be polluted, though not by poison.[6] Both by the law of nations and by the law of nature it is permissible to use assassins.[7] In general, by the law of nations anything is permissible as against an enemy.[8] Enemy property may be destroyed and pillaged, including sacred property.[9] The same law of nations permits the enslavement of those captives with regard to whom the captor does not avail himself of his right to kill them—a rule which he regards as justified and, on the whole, beneficent as being an inducement to the captors to 'willingly refrain from recourse to the utmost degree of severity, in accordance with which they could have slain

[1] *Proleg.* 28.
[2] Book I, ch. ii.
[3] Book III, ch. iv, § vi.
[4] Ibid., § viii.
[5] Ibid., § xi.
[6] Ibid., § xvii.
[7] Ibid., § xviii.
[8] Ibid.
[9] Book III, ch. v, §§ i, ii.

the captives, either immediately or after a delay'.[1] All this has appeared to some, perhaps not without plausible reason, as lending support to the inhuman conduct of warfare by conceding to it the character of law—an effect which seems to be enhanced rather than diminished by his attempts, in the *temperamenta*, to suggest a mitigation of what he considered to be rules of law.

There are various possible explanations of this somewhat surprising outcome. The obvious explanation is that, without in the least approving that practice, Grotius believed it to be part of the customary law of nations —although, if that be so, it may not be easy to see why, in the *Prolegomena*, he spoke of them as evidencing a lack of restraint of which even barbarous races should be ashamed. It is possible that he adopted the device of *reculer pour mieux sauter* by pointing to the inhumanity of the existing practices as an irresistible argument in support of those precepts of humanity, charity, and honour which he developed in the *temperamenta* with so much zeal and fervour. It may also have occurred to him that his exhortations to moderation might appeal to statesmen and commanders in the field only if they knew that the appeal came from a writer acquainted with the realities of warfare and not altogether unwilling to consider the actual practice as a source of legal rules—imperfect as they might be. Neither can the possibility be dismissed that the treatise which he was writing—an exile without private means to support himself and his large family—was being prepared with an eye to diplomatic employment and that, for that purpose, it would have been of advantage to gain the reputation of a lawyer who takes fully into account the practice of states.

On the other hand, in estimating the probable humanizing influence of *De Jure Belli ac Pacis* we must not disregard the possibility that it may have been influential in the opposite direction. When a commanding general finds it laid down in the leading treatise that the killing or enslavement of prisoners of war or devastation of cities is part of the law of nations, he may be disinclined to decide that it is his imperative duty to act upon a different rule. He may, with some justification, disregard the exhortation which Grotius addresses to generals that 'it is the duty of the highest authorities and commanders, who wish themselves to be regarded as Christians, both by God and by men, to forbid the violent sack of cities and other similar actions'.[2] They may have considered that their calling was not a proper occasion for exhibiting the virtues of Christian charity—kindly and humane as they may have been as individuals. We recall the extraordinary episode

[1] Book III, ch. vii, § v. 1.

[2] Book III, ch. xiii, § viii. 4. Sir Henry Maine (*International Law* (1887), p. 23) expresses the view that the effects of *De Jure Belli ac Pacis* in this respect were 'exceedingly prompt', but this is a matter of conjecture which was not substantiated by the subsequent course of the Thirty Years War.

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of Tilly—the general commanding the troops who sacked Magdeburg on 17 May 1631 when 24,000 inhabitants lost their lives—riding amid the confusion of the burning city, clumsily nursing a baby which he had plucked, alive, from the arms of its dead mother.[1] There may be substance in the report that Gustavus Adolphus, King of Sweden, carried with him a copy of *De Jure Belli ac Pacis* wherever he went during his German campaign.[2] He was a devout Christian and, as was his wont, he prayed in front of his troops on the day on which the bullet of the enemy—or was it the hand of an ally?—cut short the span of a gallant life. But he could have used Grotius's work for an opposing variety of purposes. It is not certain that he did not. His practice of systematically devastating the country-side through which his troops passed is a matter of history. This he did as part of the practice—which was then general—of depriving the enemy of the possibility of feeding his armies. The savagery of the concluding phases of the Thirty Years War—at a time when repeated editions of *De Jure Belli ac Pacis* were making their appearance—had not diminished by the time the struggle had reached a drawn-out end of futility and exhaustion. There is no doubt that the conduct of war at the beginning of the eighteenth century marked a distinct mitigation of practice as compared with the Thirty Years War, but more evidence than is as yet available would be necessary to justify us in assuming a connexion between that improvement and the teaching of Grotius.

Finally, while the treatise has appeared to some to fail in the achievement of its avowed object in respect of the law of war, it has drawn upon itself vehement condemnation as a servile and reactionary instrument of justification of established authority. The doctrine of the law of nature has been exposed to the reproach that it has served more often as a bulwark of the existing order of things than as a lever of progress. Grotius seems to have given a semblance of support to that view. He justifies slavery by reference to the law of nature—a proceeding supported by a venerable array of authority from Aristotle to Locke. Although the social contract is an important component of his political theory, he attributes equal weight to the original acquisition of sovereignty by conquest on the part of the ruler. It is in this sphere that he has been denounced, in intemperate terms, as confusing law and fact.[3] He explicitly refuses to commit himself to any unqualified affirmation of the sovereignty of the people. He expressly rejects the view that 'everywhere and without exception sovereignty resides in the people so that it is permissible for the people to restrain and to punish kings whenever they make a bad use of their power'.[4] He supports his opinion by an

[1] Wedgwood, *The Thirty Years War* (1938), p. 288.

[2] Miss Wedgwood apparently accepts the report as authenticated in Oxenstierna's writings (op. cit., p. 271).

[3] See above, p. 1.

[4] Book I, ch. iii, § viii. 1.

elaborate and lengthy argument the gist of which is that any person may voluntarily enslave himself to anyone he pleases for private ownership.[1] For this reason he denies that the subjects are always entitled to regain their liberty—even if they lost it as the result of force. For, he says, subjection though due originally to force may receive subsequent confirmation by tacit acceptance: 'The will of the people, either at the very establishment of sovereignty or in connexion with a later act, may be such as to confer a right which for the future is not dependent on such will.'[2] In the same line of thought he denies the right of active resistance.[3] This view is qualified, as we shall see,[4] not only by the affirmation of the right and duty of passive resistance in face of orders contrary to the law of nature and the commandments of God,[5] but also by vast and significant categories of exceptions. Viewed in proper perspective, the denial of the right of resistance and the support for the sovereignty of the ruler appear less damaging to the character of the treatise than their intransigence suggests.[6] Yet they are not accidental; neither is the uncompromising expression with which they are affirmed. They are not, as we shall see, due to a perversity of thinking which makes us shrug our shoulders with incredulous astonishment. But they do not add to the greatness of *De Jure Belli ac Pacis*.

These faults of method and substance which we have traced in *De Jure Belli ac Pacis* are such that, indirectly, they suggest qualities so great and so permanent as to give the very fullest measure of compensation for these defects and to explain the enduring influence of that work in the realm of human thought in general and of international law in particular. We are concerned here only with the latter. The standing of *De Jure Belli ac Pacis* as an authority relied upon in judicial decisions, national and international, has been higher and more persistent than that of any other of the founders of international law. This can be seen, for instance, in the lengthy pleadings and arguments before and by the various Claims Commissions established by the Jay Treaty of 1794 between Great Britain and the United States, the first modern treaty of arbitration.[7] What is even more impressive is the reverent recourse to his treatise by the four greatest writers in the field of international law in the century which followed, namely, by Pufendorf, Bynkershoek, Wolff, and Vattel—even when, as often happens, they dis-

[1] Book I, ch. iii, § viii.

[2] Book II, ch. iv, § xiv. 1.

[3] Book I, ch. iv, § ii. 1. He denies that the ruler who maltreats an innocent person by that fact necessarily ceases to be a ruler: Book II, ch. i, § ix. 2.

[4] See below, p. 46.

[5] Book I, ch. iv, § i. 3.

[6] See below, p. 45.

[7] See, e.g., *International Adjudications* (ed. by Moore), vol. iv (1931), Mixed Commission under Article VII of the Jay Treaty, pp. 357, 384–6, 390–2, 413–15 (on carriage of contraband), pp. 232–7, 269–79, 282–3 (on enemy character), pp. 246–7, 251–2 (on reprisals and exhaustion of legal remedies), pp. 419–21 (on measure of damages).

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agree with him. Undoubtedly, the general picture of international relations in the two centuries which followed the publication of *De Jure Belli ac Pacis* was not one pointing to any direct influence, in the sphere of practice, of the essential features of the Grotian teaching. But the view that, for that reason, Grotius's work was during that period consigned to oblivion[1] is unwarranted and pessimistic. If it were so there would have been no reason why Grotius should have been the first target of criticism in the opening chapters of *Contrat Social*.[2] Rousseau would have hardly thought it worth while to select for that purpose a writer who had become a dim memory. Voltaire, who, he said, was bored by Grotius's learned quotations masquerading as argument, would not have troubled to read him.[3] De Saint-Pierre's *A Project for Settling an Everlasting Peace in Europe* would not have its title-page adorned with a passage from *De Jure Belli ac Pacis* recommending the holding of international conferences for the purpose of settling disputes.[4] Between 1680 and 1780 there were thirty editions of the work in Latin; nine in French; four in German; three in English.[5] An English historian of international law writing in 1795 attributed to him a lasting influence not only upon the science but also on the practice of international law.[6] In the nineteenth century his authority, in the writings of jurists and in State Papers, remained unimpaired. When in 1925 jurists of many nations united in celebrating the tercentenary of the publication of *De Jure Belli ac Pacis*, it was manifest that the inspiration which for three centuries emanated from that treatise had by no means become a thing of the past.

There are a number of factors which, in a sense, are external to the substance of Grotius's teaching and which had a share in securing its contemporaneous success and its place in the succeeding centuries. The first is its timeliness. At the time that *De Jure Belli ac Pacis* was published the historic process of the disintegration of European political society as hitherto known and the rise of the territorial sovereign state were being consummated. The Thirty Years War, which, to all appearances, was a war of religion, actually began and continued as a war of secular claims and ambitions of dynasties and nations. The rivalry between France and Spain had been a problem of European politics for three centuries. It had been kept in check by the overriding unity of religion. The Thirty Years War,

[1] See Van Vollenhoven, 'Grotius and Geneva', in *Bibliotheca Visseriana*, vol. vi (1926), pp. 15, 16, 30–4.

[2] Book I, ch. ii.

[3] *Dialogues et entretiens philosophiques* (Œuvres complètes, 1824), vol. xxxvi, p. 232.

[4] Book II, ch. xxiii, § vii. 4 (in the English translation of 1714).

[5] For an exhaustive list see *De Jure Belli ac Pacis* (translation in 'Classics of International Law', 1925), pp. 877–86.

[6] Ward, *An Enquiry into the Foundation and History of the Law of Nations in Europe from the Time of the Greeks and the Romans to the Age of Grotius* (1795), 2 vols. He says: 'We may probably be safe in assuming, that it is to his comprehensive mind and learning, that the law, as construed at present, has chiefly owed its distinguishing regularity' (vol. ii, p. 604).

when Catholic France allied herself with the Protestant cause in opposition to the dynastic ambitions of the Habsburgs and when the Pope, for similar reasons, stood aloof at a time of deadly peril for the Catholic party, showed clearly the implications of the change. In a different sphere the demise of the feudal system gave a new and higher significance to the territorial state. The need for a system of law governing the relations of the independent states to replace the legal and spiritual unity of Christendom had thus become urgently obvious. If it is accurate to say that Grotius is the founder of modern international law, it is equally true that the necessity for an international law secured to the work of Grotius a place which otherwise it might not have acquired. Of that necessity the lessons of the Thirty Years War were a most compelling reminder. The *temperamenta* may have proved a vain hope so far as the actual conduct of the war was concerned. But its experience proved their urgency up to the hilt. The sacredness of the plighted word of treaties, one of the corner-stones of Grotius's teaching, may have had to stand the mocking test of the treachery of the politics of the Thirty Years War—the state whose interests Grotius represented diplomatically in Paris was bound with France and Saxony by treaties of alliance to which, taught by experience, it attached an importance not superior to that of a precarious armistice with a treacherous foe—but that very experience tended to emphasize the meaning of the fundamental rule *pacta sunt servanda.*

Secondly, however incomplete—when judged by reference to the present scope of international law—*De Jure Belli ac Pacis* may appear to be, it was the first comprehensive and systematic treatise on international law. Grotius was not the first writer on the law of nations. Belli in 1563,[1] Ayala in 1581,[2] and, above all, Gentilis in 1598[3] wrote learnedly on the laws of war; Vittoria about 1532[4] and Suarez in 1612[5] laid the foundations of the jurisprudential treatment of the problem of the international community as a whole. But no one before Grotius attempted the treatment of the subject in its entirety. There is in *De Jure Belli ac Pacis* a great deal of matter which is not and never has been within the proper sphere of international law, but there is in it all the international law that existed in 1625.

Thirdly, the very circumstance that a substantial portion of the treatise was devoted to matters which had little to do with what is generally regarded as belonging to international law proved a weighty contributory factor in the success which it achieved. For *De Jure Belli ac Pacis* is to a large extent a general treatise of law in its wider meaning (including constitutional law,

[1] *De re militari et bello tractatus.*
[2] *De jure bellico*; *De officiis bellicis*; *De disciplina militari.*
[3] *De jure belli libri tres.*
[4] *De Indis*; *De jure belli* (published in 1557).
[5] *Tractatus de legibus et Deo legislatore.*

the theory of the state, and the basis of legal and political obligation) and of jurisprudence. International law proper forms merely a part—though the most important part—of a wider system. The reason assigned by Grotius, and by others, for that prolixity is that that peripheral matter was necessary as an exposition of the rights which might be affected by unlawful action providing a legitimate reason for war.[1] But Grotius himself spoke of the treatise as one pertaining to philosophy of law.[2] There is no doubt that, on balance, what many critics regarded as pretentious irrelevancy proved to be an invaluable asset. For there was presented to the world an exposition of international law woven into the structure of a general system of law and jurisprudence—a significant affirmation of the unity of all law and of the final place of international law in the general scheme of legal science. The effect was to enhance the authority of the treatise and of its main theme, namely, the law of nations.

Finally, the probability ought not to be discounted that the contemporaneous success of the work was to some extent determined by the already great reputation of its author. In 1625 Grotius was a European figure in his own right. His name added lustre to and helped to launch a work which in the course of centuries became synonymous with his fame.

However, all these factors—the timeliness of the treatise, its comprehensiveness as an exposition of international law, its wide jurisprudential background, and the already considerable reputation of its author—are, in a sense, circumstances external to the work. While they may account for its success at the time of its publication and the period immediately following it, they do not explain the powerful and sustained influence of what may be called the Grotian tradition in international law. They do not explain why *De Jure Belli ac Pacis* has been in the history of modern international law more than a mere symbol. Undoubtedly, the treatise is no longer a readable work for the purposes of current instruction. Its usefulness as an authority for any specific legal proposition is questionable. Writers and advocates still attach importance to supporting their thesis by reference to a passage from Grotius, but the persuasive power of such arguments is, except for the purpose of historical illustration, distinctly limited. It is doubtful whether any ambitious attempt to rewrite the treatise would impart to it an air of modernity or any appreciable degree of usefulness. Yet the fact is that the impact of *De Jure Belli ac Pacis* is not spent; that the 'father of international law' is still a teacher; and that the significance and the potentialities of the guiding ideas of the treatise as a moulding force are such as to preclude it from being consigned to the province of mere legal history.

What are the aspects of the teaching of Grotius which, notwithstanding

[1] *Proleg.* 33–5. [2] Ibid. 30.

shortcomings of method and defects of substance, lift his work above the plane of a mere episode, however important, in the history of international law and of its development as part of jurisprudence? There has been controversy whether Grotius could justly claim to be the 'founder' of international law or whether others, especially Gentilis and Vittoria, cannot more accurately be regarded as having laid the foundations of the modern law of nations. But the dispute is, in essence, one of words. For no one denies to Grotius the representative quality of pre-eminence. What, once more, is the reason? What permanent qualities have prompted eulogies such as that by a great man of letters and a wise statesman who referred to *De Jure Belli ac Pacis* as one of the 'cardinal books in European history'[1] and as being, together with Adam Smith's *Wealth of Nations*, among the dozen products of literature which have been 'wide spreading acts', not books?[2] The answer is that the principal and characteristic features of *De Jure Belli ac Pacis* are identical with the fundamental and persistent problems of international law and that in nearly all of them the teaching of Grotius has become identified with the progression of international law to a true system of law both in its legal and in its ethical content. These main features of the Grotian tradition will now be considered.

1. *The Subjection of the Totality of International Relations to the Rule of Law.* In the first instance, Grotius conceives of the totality of the relations between states as governed by law. This is the central theme of the treatise and its main characteristic. There are no lacunae in that subjection of states to the rule of law. Modern international law recognized for a long time the existence of gaps which obliterated altogether the border-line between law and lawlessness in international relations. Of these gaps the admissibility of war as an absolute right of states, requiring no other legal justification, is the outstanding example. In laying down the distinction between just and unjust war Grotius rejected the claim to any such right.[3] Neither did he concede to states the absolute faculty of action in self-preservation—a right which, till recently, writers coupled with the legal power of the state to determine, with finality and to the exclusion of any outside tribunal, the justification of action in self-defence.[4] The emphasis

[1] Viscount Morley, *Politics and History* (1912), in *Collected Works* (1921), vol. iv, p. 57. And see below, p. 53, n. 1, for Lord Acton's view.

[2] Ibid., p. 13.

[3] See below, p. 37.

[4] Thus writers have interpreted the various declarations accompanying the General Treaty for the Renunciation of War and reserving to the Parties both the right of resorting to war in self-defence and of determining when such action is necessary as meaning that the Parties have the exclusive and ultimate right to pronounce upon the legitimacy of the action said to have been taken in self-defence. No such right is implied either in the Treaty or in the reservations thereto. The state which believes itself to be in danger is entitled to determine, in the first instance, whether action in self-preservation is necessary. The ultimate determination of the legitimacy

with which Grotius denies the absoluteness of the right to act in self-preservation is deeply impressive. That denial of an unqualified right of self-preservation was not a seed which fell on totally barren soil. For we find the same idea expressed in pregnant words two and a half centuries later by Westlake. Self-preservation, he says, does not constitute a principle. It is rather 'a primitive instinct, and an absolute instinct so far as it has not been tamed by reason and law, but one great function of the law is to tame it. . . . In principle we may not hurt another or infringe his rights, even for our self-preservation, when he has not failed in any duty towards us.'[1] In the same line of thought Grotius challenged the right of a state to go to war in order to ward off an anticipated attack.[2] There is no trace in his treatise of the suggestion that the regulative power of international law is limited to matters of small import—a view which has gained currency in relation to the question of the compulsory jurisdiction of international tribunals[3] and, more recently, of the function of international law as a whole.[4]

Although he did not achieve the impressive solemnity of the language of Suarez in the affirmation of the unity of mankind[5] and of the existence of a community of nations, he put the recognition of the interdependence of states and of their subjection to law in the forefront of the treatise.[6] Negatively, he interpreted the juridical solidarity of nations as implying that every

of the action taken is a matter for decision by an impartial body. See the Judgment of 31 August 1946 of the International Military Tribunal at Nuremberg: 'It was further argued that Germany alone could decide, in accordance with the reservations made by the many Signatory Powers at the time of the conclusion of the Briand–Kellogg Pact, whether preventive action was a necessity, and that in making her decision her judgment was conclusive. But whether action taken under the claim of self-defence was in fact aggressive or defensive must ultimately be subject to investigation and adjudication if international law is ever to be enforced' (*Transcript of the Proceedings*, p. 16,853).

[1] *Collected Papers* (ed. in 1914), p. 112. He says in the same chapter: '. . . although it is certainly indispensable for the welfare of men that they should be associated in some state tie, it does not follow that their welfare imperatively requires the maintenance in its actual limits, and with resources entirely unimpaired, of the actual state tie in which they happen to be engaged' (ibid., p. 113). And see T. H. Green, *Principles of Political Obligation* (1895), § 166, who says that a state that 'needs to defend its interest by action injurious to those outside it . . . by no means fulfils its purpose . . . it might perhaps be swept away and superseded by another with advantage to the ends for which the true State exists'.

[2] See below, p. 37.

[3] The existing limitations upon the jurisdiction of international tribunals—limitations expressed in specific reservations and implied in one of the many connotations of 'legal' disputes —assume that these tribunals cannot properly be entrusted with compulsory jurisdiction affecting vital interests of states. For an analysis of the underlying theory see the writer's *The Function of Law in the International Community* (1933), pp. 183–201.

[4] See Brierly in this *Year Book*, 21 (1944), pp. 51–7, and in *International Affairs*, 22 (1946), pp. 353–6. And see below, p. 35.

[5] 'Mankind, though divided into numerous nations and states, constitutes a political and moral unity bound up by charity and compassion; wherefore, though every republic or monarchy seems to be autonomous and self-sufficing, yet none of them is, but each of them needs the support and brotherhood of others, both in a material and a moral sense. Therefore they also need some common law organizing their conduct in this kind of society' (*Tractatus de Legibus ac Deo Legislatore* (1612), Book II, ch. 19, § 5).

[6] See below, p. 31.

state is entitled to inflict punishment upon the wrongdoer, who by his very transgression puts himself in a position of inferiority to other states.[1] It may also be noted in this connexion that he did not limit the orbit of international law to the states of Christian civilization. He recognized the binding force of treaties concluded with infidels. There was no room in his system for wars of religion—though he considered that there was a duty incumbent upon Christian states to defend one another against aggression by infidels.

2. *The Acceptance of the Law of Nature as an Independent Source of International Law.* With the affirmation of the rule of law as extending to the totality of the relations of states there is connected the second feature of the Grotian tradition, namely, the view that the law thus binding upon states is not solely the product of their express will. Grotius accepted as self-evident the proposition that the sovereign—the state—is bound by the law of nations and the law of nature.[2] The law of nations proper—*jus gentium voluntarium*—is, of course, the product of consent as manifested in the practice of states. Grotius's *jus gentium* thus conceived is not synonymous with public international law. It is distinguished from municipal law (*jus civile*), which emanates from the civil power of one state; it embraces all law—public and private, international and other—which has been sanctioned by the practice of all nations or of many nations.[3] It is one of the component parts of international law, but not the whole of it—a fact which seemingly escaped some of the early critics of Grotius such as Pufendorf and Barbeyrac, who reproached him with basing all international law on consent. Similarly, though a great deal of international law proper rests on consent, much, but not all,[4] of it follows from the precepts of the law of nature. In a wider sense, the binding force even of that part of it that originates in consent is based on the law of nature as expressive of the social nature of man.

It would be a mistake to judge the importance of the part played by the law of nature in *De Jure Belli ac Pacis* by reference to its use in relation to matters affecting international law proper such as treaties between states, the law of diplomatic immunities, and, above all, the law of war. For, as Grotius points out in the opening passages of the chapter on the Right of Legation,[5] in these matters he relies largely on the 'voluntary' law of nations as evidenced by international practice. The significance of the law of nature in the treatise is that it is the ever-present source for supplementing

[1] Book II, ch. xx, § iii. 1; ibid., § xl. 1.

[2] Book I, ch. iii, § xvi. 1. [3] Book I, ch. i, § xiv.

[4] There is probably no sufficient warrant for Sir Henry Maine's view (*Ancient Law* (1920 reprint), p. 103) that Grotius identified *jus gentium* and *jus naturae*.

[5] Book II, ch. xviii.

the voluntary law of nations, for judging its adequacy in the light of ethics and reason, and for making the reader aware of the fact that the will of states cannot be the exclusive or even, in the last resort, the decisive source of the law of nations.

This aspect of the system of Grotius has become an integral part of the doctrine and of the practice of the modern law of nations—a part more real than the accepted terminology in the matter of sources of international law has accustomed us to assume. For who are the positivists of whom it may be said, with any approach to accuracy, that they regard the will of sovereign states as the exclusive source of international law? Bynkershoek, generally regarded as the typical positivist of his period, not only repeatedly invokes custom and reason as a source of the law of nations.[1] When confronted with an apparently uniform chain of treaties and municipal enactments cited in support of a view which he considered unreasonable, he refused to accept them as an authority for an asserted legal rule on the ground that 'the law of nations cannot be deduced from these, for reason, the preceptress of the law of nations, will not permit a general and indiscriminate interpretation of these practices'.[2] Hall, the leading British positivist, who appears to limit the sources of international law to usage and treaties,[3] actually bases international law on the natural law foundation of postulates and assumptions. 'The ultimate foundation of international law is an assumption that States possess rights and are subject to duties corresponding to the facts of their postulated nature.'[4] What is that assumed nature? 'It is postulated of those independent states which are dealt with by international law that they have a moral nature identical with that of individuals, and that with respect to one another they are in the same relation as that in which individuals stand to each other who are subject to law.'[5] Kelsen, who denounces natural law as being both unscientific and, historically, an instrument of reaction, assumes as the basis of international law the same jurisprudential maxim on which, in substance, Grotius made it to rest, namely, the rule *pacta sunt servanda*—the difference being that for Grotius the rule *pacta sunt servanda* is a precept, perhaps the main precept, of natural law while for Kelsen it is a 'meta-legal' initial hypothesis. The methodological difference may be considerable, but we cannot be sure of its practical relevance.

The fact is that while within the state it is not essential to give to the ideas of a higher law—of natural law—a function superior to that of providing the inarticulate ethical premiss underlying judicial decisions or, in the

[1] *Quæstionum juris publici libri duo* (1737 edition), Book I, ch. vi, p. 46; ch. viii, p. 66; ch. x, p. 77.
[2] Book I, ch. xii, p. 95 (Tenney Frank's translation in 'Classics of International Law', 1930).
[3] *A Treatise on International Law* (3rd ed. 1890), Introduction, p. 7.
[4] Op. cit., § 7 (p. 44).
[5] Op. cit., § 1 (p. 18).

last resort, of the philosophical and political justification of the right of resistance, in the international society the position is radically different. There—in a society deprived of normal legislative and judicial organs—the function of natural law, whatever may be its form, must approximate more closely to that of a direct source of law. In the absence of the overriding authority of the judicial and legislative organs of the state there must assert itself—unless anarchy or stagnation are to ensue—the persuasive but potent authority of reason and principle derived from the fact of the necessary coexistence of a plurality of states. This explains the pertinacity, in the international sphere, of the idea of natural law as a legal source. With modern writers that search for a legal source supplementing the ordinary sources of positive law expresses itself in the doctrine of implied acquiescence of any single state confronted with the fact of general consent.[1] Implied consent in this sphere is, upon analysis, a recognition of the law-creating result of the existence of a society of states, of the 'reason of the thing' inherent in that fact, of the natural law of international relations. The same necessity has found expression in treaties laying down the rules of law to be applied by international tribunals[2] and, in particular, in Article 38 (3) of the Statute of the International Court of Justice which enumerates among the sources of law to be applied by the Court 'general principles of law recognized by civilized nations'. Neither is that view absent from judicial decisions. Of these, Mr. Justice Story's judgment in *La Jeune Eugénie* is one of the most lucid and most uncompromising assertions of this aspect of the Grotian tradition. He refused to admit 'that no principle belongs to the law of nations which is not universally recognized as such, by all civilized communities, or even by those constituting what may be called the Christian States of Europe'. 'It may be unequivocally affirmed', he said, 'that every doctrine, that may be fairly deduced by correct reasoning from the rights and duties of nations, and the nature of moral obligations, may theoretically be said to exist in the law of nations; and unless it be relaxed or waived by the consent of nations which may be evidenced by their general practice and customs, it may be enforced by a court of justice whenever it arises in judgment.'[3] This may appear to some an exaggerated affirmation of the authority of the higher law—of the law of nature—in the international sphere. It is not suggested that it is in accordance, in all its challenging rigour, with the predominant view on the subject. But the gist of it expresses accurately that particular aspect of the Grotian tradition

[1] See, e.g., Westlake, *International Law* (2nd ed. 1910), vol. i, p. 16. Professor Borchard says: 'The rules [of international law] rest partly on the assent of States and partly on generally approved practice, assent to which is either presumed or, in respect of a single State declining adherence, immaterial' (*Encyclopædia of the Social Sciences* (1932), vol. viii, p. 167).

[2] For a survey of these treaties see Lauterpacht, *Private Law Sources and Analogies of International Law* (1927), § 26.

[3] 2 Mason 409, 448.

which, in broad outline, has become part and parcel of modern international law. We are not concerned here with the controversy as to the merits or otherwise of the law of nature. Undoubtedly the law of nature has often been resorted to in support of causes dubious and retrogressive. But this ambivalence of the ideology of natural law is only slightly relevant in the field of international law. There, by and large, it has acted as a lever of progress.[1] The law of nature has been rightly exposed to the charge of vagueness and arbitrariness. But the uncertainty of the 'higher law' is preferable to the arbitrariness and insolence of naked force. These considerations explain the significance of this aspect of the Grotian tradition in the history of the law of nations. He secularized the law of nature. He gave it added authority and dignity by making it an integral part of the exposition of a system of law which became essential to civilized life. By doing this he laid, more truly than any writer before him, the foundations of international law.

3. *The Affirmation of the Social Nature of Man as the Basis of the Law of Nature.* The place which the law of nature occupies as part of the Grotian tradition is distinguished not only by the fact of its recognition of a source of law different from and, in proper cases, superior to the will of sovereign states. What is equally significant is Grotius's conception of the quality of the law of nature which dominates his jurisprudential system. It is a law of nature largely based on and deduced from the nature of man as a being intrinsically moved by a desire for social life, endowed with an ample measure of goodness, altruism, and morality, and capable of acting on general principles and of learning from experience.[2] He admits that man is an animal, but one different in kind from other animals. That difference consists in his impelling desire for society—not for society of any sort, but for peaceful and organized life according to the measure of his intelligence. It is a difference the essence of which is the denial of the assertion that 'every animal is impelled by nature to seek only its own good'.[3] There is perhaps no political writer in whose system that conception of the nature of man is more prominent. The theme is, of course, one of the persistent problems—perhaps *the* problem—of political thought. For Machiavelli and Hobbes man is essentially selfish, anti-social, and unable to learn from experience; *homo homini lupus* is the fundamental truth; human nature does not change; pessimism as to the potentialities of its improvement is of the essence of

[1] On the part of the law of nature as a pioneer of reform see Gierke, *Das deutsche Genossenschaftsrecht*, vol. iv (1913): 'Die Staats- und Korporationslehre der Neuzeit', p. 276.

[2] *Proleg.* 5–9.

[3] *Proleg.* 6. He says elsewhere: 'If other ties are wanting, the tie of a common human nature is sufficient. Nothing belonging to mankind is indifferent to man' (Book II, ch. v, § ii. 1 (Whewell's translation)).

sanity; the basis of political obligation is interest pure and simple; the idea of a sense of moral duty rising supreme over desire and passion is a figment of imagination fatal alike to action and to survival. This is the typical realistic approach of contempt towards the 'little breed' of man. On that line of reasoning there is no salvation for humanity but irrevocable subjection to an order of effective force which, while indifferent to the dignity of man, yet contrives to prevent his life from being 'solitary, poor, nasty, brutish, and short'. The approach of Grotius and—to mention a writer as distinguished and as influential—Locke is diametrically different.

One of the salient characteristics of *De Jure Belli ac Pacis* is not only the frequency of the reliance on and appeal to the law of love, the law of charity, of Christian duty, of honour, and of goodness, and to the injunctions of divine law and the Gospel: the element of morality and the appeal to morality are, without interfering decisively with the legal character of the exposition, a constant theme of the treatise. An equally persistent feature is Grotius's faith in the rational constitution of man and his capacity to see reason and to learn from experience. This aspect of *De Jure Belli ac Pacis* goes a long way towards explaining the force of the Grotian tradition in the international sphere. For there, more than anywhere else, the implications of the pessimistic estimate of human nature reveal themselves in all their paradoxical and depressing clarity. Writers and statesmen dwell lucidly and persuasively upon the incongruity and absurdity of the fact that modern civilized states live in a primitive state of nature in their mutual relations. They admit that the resulting situation is such as to threaten not only the rational growth of states but, in the age of scientific weapons, their very existence. They concede that only effective submission to a comprehensive rule of law and a corresponding curtailment of the sovereignty of states may avert these dangers. But after having thus diagnosed the evil and after having disclosed the remedy, they lay down the pessimistic proposition that governments and peoples are unlikely to agree to any such solution. That renunciation of faith in the sovereignty of the rational human will shows itself in the widely adopted view that the great events and trends of history, including the phenomenon of war, are impervious to and outside the conscious and responsible volition of man and that the 'irresistible march of events' is the ultimate arbiter of human fate.[1] This lack of faith in the power of man conceived as a rational social being manifests itself not only with respect to the crucial aspect of international relations, but also with regard to specific questions of international organization. Thus it is generally admitted that international legislation, conceived as a process of enacting binding rules of law by competent organs of the international

[1] For a philosophical refutation of this view see Viscount Samuel's *Belief and Action* (1937), pp. 194–9.

society, is a vital condition of the normal functioning of international law and of the compulsory jurisdiction of international tribunals which, in default of an international legislature remedying and developing existing law, may have to render judgments inconsistent with progress and dangerous to peace. Yet those who propound and admit the force of that view point with resignation to the improbability of states ever acquiescing in a limitation of sovereignty implicit in a true legislative competence of the international community.

Now it is characteristic of that pessimistic school of thought with respect to the social and moral nature of man that it has applied itself consistently only to the international relations of human beings. Within the state, it has advanced means for overcoming the evils of strife and anarchy. Thus, according to Hobbes,[1] it is a law of nature that the individual, by giving up in the social contract his right to do all things, should achieve a relative degree of security; and it is a law of nature that the contract be kept (so long, at least, it appears, as the security which it gives is effective). No such law of nature, in either sense, is asserted to be in operation among states; they are—and apparently can[2] and must remain—in the true and original state of nature. We are thus confronted, in addition to the double standard of morality as expressed in the doctrines of 'reason of State', with what may not inaccurately be described as the double standard of reason and foresight. There is no room for either in the system of Grotius. In fact, much of the appeal and potentialities of the Grotian tradition lies in the lesson which can be drawn from his conception of the social nature and constitution of man as a rational being in whom the element of moral obligation and foresight asserts itself triumphantly over unbridled selfishness and passion, both within the state and in the relations of states.

4. *The Recognition of the Essential Identity of States and Individuals.* That all-pervading element of morality and rationality which is the result of Grotius's conception of law as based in the social nature and the intrinsic goodness of man is not limited to the conduct of individuals. It extends to

[1] *Leviathan*, ch. xiv.

[2] In fact, Hobbes, Spinoza, and Vattel—who may not inaccurately be described as belonging to the 'state of nature' school of international law—seem to have faced the problem in that way. They did not ignore it. They arrived at the conclusion that the dangers which beset the individual and which call for his submission to law do not threaten independent states. Vattel, who, notwithstanding his disapproval of the 'paradoxes' and the 'detestable principles' of Hobbes, followed him closely, is explicit on the subject. 'Individuals', he says, 'are so constituted that they could accomplish but little by themselves and could scarcely get on without the assistance of civil society and its laws. But as soon as a sufficient number have united under a government, they are able to provide for most of their needs, and they find the help of other political societies not so necessary to them as the State itself is to individuals' (Preface to *The Law of Nations and the Principles of Natural Law* (1758), Fenwick's translation in the 'Classics of International Law', (1916), p. 9*a*). He gives reasons, characteristically plausible, why the mutual intercourse of states can be sufficiently regulated by natural law.

the conduct of nations and of rulers acting on their behalf. In fact, one of the most decisive features of the teaching of Grotius is the close analogy of legal and moral rules governing the conduct of states and individuals alike. 'Populi respectu generis humani privatorum locum obtinent'[1]—this is a pregnant and persistent theme in the teaching of Grotius. This analogy of states and individuals has proved a beneficent weapon in the armoury of international progress. It is not the result of any anthropomorphic or organic conception of the state as being—biologically, as it were—assimilated to individuals, as being an individual person 'writ large'. The analogy is much more simple, more direct, and more convincing. The analogy—nay, the essential identity—of rules governing the conduct of states and of individuals is not asserted for the reason that states *are like* individuals; it is due to the fact that states *are composed of* individual human beings; it results from the fact that behind the mystical, impersonal, and therefore necessarily irresponsible personality of the metaphysical state there are the actual subjects of rights and duties, namely, individual human beings.[2] This is the true meaning of the Grotian analogy of states and individuals. The individual is the ultimate unit of all law, international and municipal, in the double sense that the obligations of international law are ultimately addressed to him and that the development, the well-being, and the dignity of the individual human being are a matter of direct concern to international law. Vattel, writing in 1758, apparently gave emphatic and lucid expression to the analogy, thus conceived, of states and individuals; though, *more Vatteliano*, this was mere meaningless lip-service to the 'natural Law of Nations' destined to yield to another natural law, that 'which declares every Nation free and independent of all other Nations'.[3] At the end of the nineteenth century Westlake was propounding, without compromise or circumlocution, the same doctrine as a matter of sound international law and of international morality. 'The society of states', he says, '. . . is the

[1] *Mare liberum*, ch. v. See also *De Jure Belli ac Pacis*, Book II, ch. xv, § xii. 1.

[2] In the judgment given on 31 August 1946 by the International Military Tribunal at Nuremberg we find an illustration of the practical implications of the problem. The Tribunal said: 'It was submitted that international law is concerned with the actions of sovereign States, and provides no punishment for individuals . . . these contentions must be rejected. . . . Crimes against international law are committed by men, not by abstract entities, and only by punishing individuals who commit such crimes can the provisions of international law be enforced' (*Transcript of the Proceedings*, p. 16,878).

[3] *Le Droit des gens ou principes de la loi naturelle appliqués à la conduite et aux affaires des Nations et des Souverains*, Introduction, §§ 7, 9. The 'natural' or 'necessary' law of nations, he says, 'contains those precepts which the natural law dictates to States, and it is no less binding upon them than it is upon individuals. For States are composed of men, their policies are determined by men, and these men are subject to the natural law under whatever capacity they act' (§ 7). Yet he proceeds to lay down—in § 9—that that natural law of nations is, in fact, valid only as an inner law of conscience. 'The liberty of a Nation would not remain complete if other Nations presumed to inspect and to control its conduct; such a presumption would be contrary to the natural law which declares every Nation free and independent of all other Nations' (Gregory's translation in the 'Classics of International Law').

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most comprehensive form of society among men, but it is among men that it exists. States are its immediate, men its ultimate members. The duties and the rights of states are only the duties and the rights of men who compose them.'[1] Hall's similar view has already been noted.[2]

Undoubtedly, international law is primarily—though not exclusively—a body of rules governing the relations of states, i.e. of individuals organized as a state. But this circumstance cannot affect decisively the moral content of international law and of the dictates of reason and of the general principles of law which underlie it. It may be true to say that 'after all' states are not individuals; but it is even more true to say that 'after all' states are individuals. For this reason there can be no insuperable difficulty in applying generally recognized principles of law to the conduct of individuals acting as members of a state and on behalf of their state. There are psychological factors which explain the tendency towards the relaxation of the moral code of conduct of individuals acting in a group. But these inducements do not partake of the immutability and of the necessity of a physical law.[3] Like other manifestations of desire and instinct, they can be regulated and curbed by reason, by the impact of moral ideas, by law. Moreover, in a group association which, like the state, is to a large extent the artificial product of law and force rather than of the more direct and intimate interplay of crowd emotions, there is even less justification for treating as permanent and inevitable the factors which tend to weaken moral restraints in the collective activities of men. The modern state is not a disorderly crowd given to uncontrollable eruptions of passion oblivious of moral scruples. It is, as a rule, governed by individuals of experience and ability who reach decisions after full deliberation and who are capable of forming a judgment on the ethical merits of the issues confronting them. Admittedly that judgment is often warped by the notion, inculcated or excused by theoreticians of 'reason of State', that rulers of states, being trustees of interests other than their own, are not entitled to act invariably upon the precepts of the moral code as generally recognized.

In stressing the practical analogy of states and individuals Grotius derived substantial assistance from the fact that in the century in which he wrote the emerging territorial state was a creature of personal rule. The history of Europe could still, to a large extent, be conceived as a history of

[1] *Collected Papers* (ed. in 1914), p. 78. [2] See above, p. 22.

[3] It has become a hall-mark of what is considered to be the realistic approach to expatiate on the lower morality of states as compared with that of individuals. See, for instance, Niebuhr, *Moral Man and Immoral Society* (1933), and, in particular, Carr, *The Twenty Years' Crisis 1919–1939* (1939), ch. 9. There is an advantage in drawing attention to factors which impair the strength of moral obligation in individuals acting on behalf of the state. On the other hand, the theme lends itself to exaggeration. In particular there has been a tendency to ignore the factors which operate in the opposite direction and to represent the existing manifestations of the 'double standard of morality' as inescapably inherent in state action in the international sphere.

dynasties and dynastic ambitions. The three hundred-odd independent sovereignties in Germany were a living example, in a variety of forms, of the patrimonial conception of the state. Marriage settlements and testamentary dispositions continued to be an important medium of territorial changes. The policy of the state was the policy of the ruling prince. The rules of conduct binding upon states were deemed to be rules binding upon their sovereigns. They were rules of law and morality governing the conduct of individual human beings. In the middle of the eighteenth century we find one of the leading treatises—that of Vattel—indicating in its title that the law which it propounds is one relating to the conduct of nations and sovereigns.[1] 'The Law of Nations is the law of sovereigns', says the author in the Preface. Yet, essentially, the situation did not change radically with the disappearance of the patrimonial theory and practice. That event had an effect on the rules which assimilated state territory to private ownership of land, and the like. It was not relevant to the more general question of subjects of the obligations of international law. For whatever may be the form of the government of the state, those who rule it and act on its behalf are individual human beings, and it is to them only that, upon final analysis, rules of law are addressed.

Thus the analogy of states and individuals which is one of the crucial aspects of Grotius's teaching was the twin result of two distinct causes. One, which was of a transient character, was the patrimonial character of a considerable number of European states. The other, more enduring, was the realization of the true nature of rules of international law as addressing themselves to individual human beings acting on behalf of the state. The cumulative effect of these two causes was to further the scientific development of international law and to emphasize the moral content of its rules. Largely on account of the recognition of that fundamental analogy, the door was wide open for the enrichment and advancement of international law with the help of rules of private law, Roman and other, as expressive of the general principles of law recognized by civilized states. Critics of the positivist complexion have frequently raised doubts as to the propriety of that process of borrowing from private law. Even if that criticism had been justified—and it is not believed that it was—it was a lament after the event. There have been few branches of international law which have remained unaffected by the influence of private law. We have only to think of Grotius's contribution, by reference to private law, to the development of the rules of law relating to acquisition of territorial sovereignty, the principle of the freedom of the sea, and the law of state responsibility. The very notion of sovereignty, which Grotius conceived, like property, as dominion held under law, helped to deprive it of the character of absoluteness and

[1] See above, p. 27.

indivisibility.[1] Neither was it a process confined to the exposition of international law by writers; governments and international arbitrators relied upon it frequently and effectively. If we were to ignore or to underestimate these 'illicit borrowings' we should be depriving ourselves of the possibility of understanding what is perhaps the major part of international law. To discard them as a matter of future practice is impossible. To do so would mean to jettison a substantial part of positive international law in which the rules derived by analogy have become crystallized. It would mean challenging the purpose of that significant provision of the Statute of the International Court of Justice which constitutes the general principles of international law as recognized by civilized states one of the three principal sources of the law to be applied by the Court. To discard them as a matter of principle would mean to abandon the view, which is amply justified by experience, that upon the continued vitality of this aspect of the Grotian tradition depends the progressive approximation of international law to a system of legal rules worthy of that name.

5. *The Rejection of 'Reason of State'*. The recognition of the social and moral nature of man as the principal source and cause of law explains, when coupled with the persistent affirmation of the analogy of states and individuals, the fifth characteristic of the Grotian tradition, namely, his denial of the 'reason of State' as a basic and decisive factor of international relations. That denial of the principle of double morality is for Grotius so obvious and so fundamental that, it would seem, he regards it as below the dignity of his work to engage in the then customary argument *ad hominem* on the subject. A startling feature of *De Jure Belli ac Pacis* is the absence not only of any polemics, but of all reference to Machiavelli. Bynkershoek, in discussing the observance of public agreements, refers with contempt to 'the master of iniquity [who] in his *Principe* teaches that treachery is lawful for princes' and to the '*ratio status*, a monster of many heads which almost no prince resists'.[2] Elsewhere he speaks of 'that *monstrum horrendum, informe, ingens, cui lumen ademptum*' which we call 'reason of State' and observes that 'if nations will yield to this beast . . . it will soon be useless to argue further about the principles of international law'.[3] Grotius's disapproval is one of silence. There is simply no mention of the great realist. The flood of books and pamphlets on the 'reason of State', which at that time assumed the dimensions of a torrent, is ignored.[4]

[1] This is probably one of the reasons why Grotius never advocated the principle of absolute equality of states. See Dickinson, *Equality of States in International Law* (1920), pp. 34–67.

[2] *Quaestionum Juris Publici Libri Duo*, Book II, ch. x (p. 190 in the 'Classics' translation).

[3] Ibid., Book I, ch. xxv (*in fine*).

[4] At the time when *De Jure Belli ac Pacis* was in preparation, the famous—and notorious—Machiavellian tract, attributed to Father Joseph, the *éminence grise* behind Richelieu, was being

But although he does not mention Machiavelli by name, he takes up the issue of 'reason of State' at the very beginning of the treatise. After remarking upon the usefulness of a knowledge of the law 'which is concerned with the mutual relations among states or rulers of states',[1] he points to the special necessity of studying that branch of law. For, he says, there are 'in our day' persons who view it with contempt as having no reality; who consider that for a king or a state nothing is unjust which is expedient; and that the business of the state cannot be carried on without injustice.[2] He sees an intimate connexion between the rejection of the ideas of 'reason of State' and the affirmation of the legal and moral unity of mankind. He insists that if no association of men can be maintained without law, 'surely also that association which binds together the human race, or binds many nations together, has need of law'.[3] This means, he says, quoting Cicero with approval, that shameful acts ought not to be committed even for the sake of one's country.[4] It means also that the hall-mark of wisdom for a ruler is to take account not only of the good of the nation committed to his care, but of the whole human race.[5] 'The name of Minos became odious to future ages for no other reason than this, that he limited his fair dealing to the boundaries of his realm.'[6] While denying that law is based on expediency alone,[7] he was ready to meet the theorists of 'reason of State' on the ground of their own choosing, namely, that of advantage. He records the fact that according to many the standards of justice applicable in the relations of individuals within the state do not apply to a state or the ruler of a state. The reason usually given for that assertion of the double standard of justice is, he says, that law is indispensable to individuals who, taken singly, cannot protect themselves, while great states, which dispose of everything needed for adequate protection, are in no need of law. Grotius rejects this view. Such, in his opinion, is the impact of economic interdependence or of military security that there is no state so powerful that it can dispense with the help of others.[8]

Grotius's rejection of the ideas of *raison d'état* finds more direct expression

composed: *Discours des Princes et Estats de la Chrestienté plus considérables à la France, selon leurs diverses qualitez et conditions.* It was published in 1624. The no less famous *De l'intérest des Princes et Estats de la Chrestienté* by Prince Henry de Rohan was not published till 1638, and Naudé's *Considérations politiques sur les coups d'état* appeared in 1639. Both were able expositions of the Machiavellian doctrine and they testified to the wide interest which the subject evoked at the time. There is no trace of all this in *De Jure Belli ac Pacis.*

[1] *Proleg.* 1.
[2] Ibid. 3.
[3] Ibid. 23.
[4] Ibid.
[5] Ibid. 24.
[6] Ibid.
[7] Ibid. 5, 22, 57.
[8] Ibid. 21, 22. See also ibid. 18: 'For just as the national, who violates the law of his country in order to obtain an immediate advantage, breaks down that by which the advantages of himself and of his posterity are for all future time assured, so the state which transgresses the laws of nature and of nations casts away the bulwarks which safeguard its own future peace.' And see above, p. 24, n. 3, and p. 26, n. 2.

in relation to concrete issues. It expresses itself in the denial of the right to resort to war unless in pursuance of a good legal cause;[1] in the rigid limitation of the right of self-defence (including the right of war in order to ward off an anticipated attack); in the concession of the right—indeed, in the injunction of the duty—of passive resistance against orders and laws contrary to the law of nature and the law of God;[2] in the concession to the subject of the right—and, again, in the injunction of the duty—to refrain from participation not only in unjust wars but also in wars the justice of which is doubtful;[3] in his stressing of the sacredness of the principle *pacta sunt servanda*.[4] There is in the treatise a challenging absence of recognition of anything approaching the ideas of reason of State directly or—as, for instance, in the case of Pufendorf[5]—indirectly. In this rejection of *raison d'état* Grotius went farther than Bodin—although Bodin, to whom Grotius was perhaps more indebted than is generally assumed,[6] had gone far in that direction. There are, indeed, in Bodin's writings passages reminiscent of the 'reason of State' when he says that 'nothing can be shameful which is connected with the well-being of the State',[7] but these are not typical of the treatise. On the contrary, although known principally as one of the main architects of the modern theory of the sovereignty of the State, he subjected that sovereignty to the precepts of the law of God and of the law of nature.[8]

There is a symbolic significance in this rejection of *raison d'état* by the founder of modern international law. For there is an inherent antagonism between international law, which, except when conceived as an empty and

[1] See below, p. 37. [2] See below, p. 46.

[3] See below, p. 38. [4] See below, p. 42.

[5] Thus we find the latter saying that it is the duty of the Prince to subordinate entirely his personal life and his personal inclinations to the interest of the state (*De jure naturae et gentium*, Book VII, c. 8, §§ 1–3); or that compacts of Princes possess validity only for so long as they are not inconsistent with the interest of the state (ibid. c. 6, § 14; c. 9, § 5).

[6] See, for instance, the close resemblance between the insistence on the part of Grotius on the duty of submission and obedience when the struggle against triumphant power seems hopeless (see below, p. 45) and Bodin's emphatic advice to the same effect (Book V, c. 5). And see Chauviré, *Bodin*, pp. 279 ff.

[7] Book V, c. 5.

[8] He approved with emphasis Seneca's maxim 'Caesari dum omnia licent, propter hoc minus licet' (see Book I, c. 8). 'The Prince', he taught, 'must not overstep the limits which God Himself, of whom the Prince is the living and breathing image, has set up through the enduring laws of nature' (ibid.). The prince is bound by the principles of good faith to observe compacts both with other states and with his own subjects, for 'good faith is the foundation of all justice. Good faith holds together not only States but the entire human society.' God Himself is bound by His promises. As the prince is the guarantor and the avenger of right and good faith within the state, he must himself observe them even at the cost of his interests. He condemns sharply the numerous examples, cited in the chapter on the Law of Nations (*De jure feciali*, Book 5, c. 6), of breaches of treaties and of treachery. Treaties must be kept even if loyalty to them threatens the existence of the state, except when what has been promised 'is by nature iniquitous or which is impossible of performance'. Neither need compacts be kept which are 'so shameful that they cannot be kept without committing a crime or confirmed by oath without wickedness' (ibid.). He was unsparing in his repeated condemnation of Machiavelli, that *homo levissimus ac nequissimus*'. (See also Chauviré, op. cit., p. 276.) At the same time he was expressing the view that law common to all nations is binding although it may not coincide with the law of God or nature (Book I, c. 8).

contradictory 'law of co-ordination', means restraint upon freedom of action, and the idea of reason of state, which means freedom from restraint. It would be mere speculation to attempt to assess the influence of Grotius on curbing the profane outlook which drew its inspiration from Machiavelli —just as it may be difficult to estimate the actual impact of *The Prince* upon the practices of international politics and diplomacy. It is immaterial that the succeeding four centuries witnessed the unprecedented ascendancy of the ideas of 'reason of State'. To attribute that phenomenon to any substantial degree to Machiavelli is to simplify the issue and to ignore the decisive factor, namely, the rise of the territorial state and of the dogma of its unlimited sovereignty. After all, Cesare Borgia was not the product of *The Prince*; he was his prototype. Machiavelli provided a philosophy, an explanation, a rationalization which was in keeping with the inductive and secular temper of the renaissance. That does not mean that he supplied an indispensable inducement. What must remain a subject for reflection is not the merits of the teaching of Machiavelli as a scientific foundation of rules of conduct. For seldom has a doctrine been propounded which fails more obviously in the primary test of a scientific rule, namely, its capacity to serve as a general canon of behaviour. Neither need we take seriously its shallow and naïve claim to exclusive realism—to seeing things as they are, and not as they ought to be. What is disquieting in the matter is the continued fascination, in one form or another, in the science of history and in the literature of international law, of the basic ideas of 'reason of State' and the apparent difficulty experienced by those who condemn it to cut themselves adrift from it wholly and unequivocally. Witness, for instance, the embarrassed hesitation, on the part of a shrewd writer, between the emphatic condemnation of the Machiavellian doctrine; the admission that there *is* a difference between public and private morality; the exhortation not to treat as iniquitous selfishness the statesman's regard for the existence, safety, and strength of his country; the view that certain actions of Bismarck which can be neither admired nor condoned 'must be treated more leniently than any dereliction of his cardinal duty, devotion to his people'; and the consummation of the elaborate argument in which he concedes that such actions are blameworthy, but that they are to be regarded as the natural faults of the politician.[1] A more recent treatment of the subject on the part of a distinguished historian follows the same inconclusive lines.[2] He associates himself fully with the general condemnation of the basic idea of *The Prince*. But he attaches importance to qualifying his condemnation: a private individual, he says, when confronted with a conflict between

[1] Figgis, *Studies of Political Thought from Gerson to Grotius* (1907) (reprint of 1931), pp. 87, 88.

[2] Gooch, *Studies in Diplomacy and Statecraft* (1942), chapter on 'Politics and Morals'.

survival and moral duty, may choose to sacrifice his life. 'A state cannot and must not make such a sacrifice, for it is the trustee of generations to come. If brutally attacked or summoned to surrender its independence, its duty, I believe, is to resist.'[1] The argument, which is often used in this connexion,[2] injects, it is submitted, a somewhat artificial element of controversy into the fundamentally simple question of what Lord Morley called the 'awful difference'[3] between good and evil. It has not been customary for critics of the ideas of *'raison d'état'* to urge that a state, when attacked, should sacrifice its independence. The state's right of self-defence or existence is not in question. But the manner in which distinguished historians, such as those mentioned, have approached the subject is symptomatic of the lure of relativism also on that issue. Lord Acton, one of the greatest and perhaps the most majestic figure in historical science, stands practically[4] alone in the uncompromising condemnation of crime clad in the garb of 'reason of State'.[5]

The great issue of 'reason of State' is still with us and, while it will continue to be an absorbing dilemma of historical science, it is one of the main problems of international law—perhaps the central problem if by law we understand restraint and if by 'reason of State' we mean rejection of any substantial restriction upon the freedom of action of sovereign states in matters which matter. The *'raison d'état'* may no longer present itself in the international sphere in the cruder forms of treacherous violence, of brazen perfidy, and of outright deceit—although recent history has shown that species of *ratio status* to be not altogether obsolete. Modern formulae such as that international law is possible only as a 'law of co-ordination' effected by agreement of sovereign States express ideas of distinct affinity with those of 'reason of State'. For there is probably more truth than exaggeration in the view that uncompromising insistence upon the unlimited rights of state sovereignty in contempt of the interests of other nations, of the interdependence of states, and of the public opinion of the

[1] Ibid., p. 322. See also, for a similar trend of argument, Lindsay, *The Modern Democratic State*, vol. i (1943), pp. 98, 99.

[2] See, for instance, Meinecke, *Die Idee der Staatsräson* (1924), pp. 531 ff.—a laborious and somewhat fatalistic affirmation of the idea of 'reason of State'.

[3] Morley, *Machiavelli*, Works (ed. of 1921), vol. iv, p. 115.

[4] Lord Morley and Thomas Arnold are in the same category. The majority of historians have deemed it incumbent upon them to refrain from passing moral judgment. The serene detachment of Ranke, of Prescott, and of Bishop Creighton is typical of that attitude, although it did not descend to the level of justifying crime or explaining it away so as to bring them within Lord Acton's bitter dictum of the strong man with the dagger being followed by the weak man with the sponge.

[5] Yet the almost legendary grandeur of his personality is due largely to the rigid consistency of his attitude on this vital problem of politics, national and international. There is no conclusive evidence that at the very end of his life Acton retracted from the fanaticism of his judgment on the subject. Nothing short of conclusive evidence can, in the circumstances, be regarded as sufficient for assuming as proven a departure from a life-long attitude.

world, is one of the manifestations of the spirit of ruthless egotism which has become associated with the idea of *raison d'état*.[1] The claim of sovereign states—a claim fully admitted by existing law—to be entitled to deny to other members of the international legal community the benefit of judicial determination of disputed legal rights belongs, essentially, to the same category. So does the practice—reminiscent of the Machiavellian doctrine of the virtues of the pretence of virtue—of cloaking the refusal to limit the state's full freedom of action in the garb of pretentious phrases and purely nominal declarations implying some such submission.[2] So does the assertion, which is an attempt at a rationalization of the existing practice, that the subjection of states to the rule of law in the international sphere is and ought properly to be limited to matters which are not 'political' and which do not affect their vital interests.[3] It may be difficult to form an estimate of the influence of *De Jure Belli ac Pacis* in curbing the spirit of *The Prince*. But there ought to be no doubt as to the place which the rejection of the ideology of *raison d'état* occupies in the Grotian system—a repudiation significant both in the absence of direct reference to Machiavelli and, more particularly, in Grotius's attitude to the questions which 'reason of State' has pretended to solve in its crude and realistic fashion.

6. *The Distinction between Just and Unjust Wars.* In the assertion of

[1] These aberrations are embedded in international practice. They are, essentially, part of existing international law. As such they have acquired a degree of respectability. It is, therefore, to be expected that some may decline, with impatient surprise, to regard them as manifestations of 'reason of State'. Such reaction, which is a natural product of habit, does not mean that the description is arbitrary or far-fetched.

[2] Of these the most prominent are the various types of undertakings of compulsory judicial settlement which leave to the state concerned the legal power to determine the extent of its own obligation.

[3] One of the reasons recently adduced in support of this view is that even within the state it is difficult, if not impossible, to enact and to enforce laws in opposition to organized groupings of vast numerical strength, such as powerful trade unions, and that the proper approach to the regulation of their interests is therefore 'political'. See, in particular, the illuminating discussion of the problem by Professor Brierly, op. cit. above at p. 20, n. 4. However, while compromise is of the essence of true democracy in the sense that the majority ought not to ride rough-shod over the interests of the minority, once a decision has been reached in accordance with constitutional practice it is enforced and, as a rule, obeyed by groups however powerful. Witness, for instance, the enactment in England, against the resentful protest of the Trade Union movement, of the Trade Disputes Act of 1927. The subjection of states members of a Federation to federal law is another example. Neither does the fact that the normal subjects of international law—i.e. sovereign states—are few in number impart a decisively 'political' character to the social regulation of their conduct and of their interests. A very substantial number of statutes in a modern state is concerned with problems and interests affecting particular groups—social, professional, geographical, and others. Probably the argument, in its entirety, is intended to show that Great Powers cannot properly be expected to submit to an outside body in matters affecting their vital interests. Under the Charter of the United Nations all members other than the Great Powers are under a legal obligation to abide by a decision, reached without their consent, of the Security Council which may involve them in war or which may determine disputed points affecting their vital interests. There may be a disadvantage in expressing in terms of general principle the attitude of all or some Great Powers at any particular period.

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'reason of State' and of the double standard of morality, the claim to an unrestricted right of war, though not the most conspicuous, is the most important. It is not the dagger or the poison of the hired assassin or the sharp practice of the realistic politician which expresses most truly, upon final analysis, the ideas of '*raison d'état*'. It is the infliction, without a shadow of a specific right and without a claim to any particular right, of the calamities and indignities of war and of the territorial mutilation and the very annihilation of statehood following upon defeat in war. Prior to the changes introduced by the Covenant of the League of Nations, the Pact of Paris of 1928, and the Charter of the United Nations, that central idea of 'reason of State' formed part of international law. States claimed—and had—the right to resort to war not only in order to defend their legal rights but in order to destroy the legal rights of other states. In the sphere of political theory Machiavelli put the position with his usual terseness: 'That war is just which is necessary.'[1] And he added, by way of explanation: 'The people will complain of a war made without reason.'[2] Bacon, who did more than anyone else to transplant the ideas of *The Prince* to English soil, and who praised Machiavelli for seeing 'things as they are', expressed similar views in holding that while a civil war is like the heat of a fever, a foreign war is like the heat of exercise, and helps to keep the body in health. To this set of ideas Hegel, Treitschke, and other nineteenth-century German theoreticians of 'reason of State' may have added the nebulous and arrogant pretentiousness of philosophical jargon; in fact they added to it little.

But although this particular—and most important—manifestation of 'reason of State' became and for centuries continued to be part of international law, it was not an unchallenged doctrine. It was opposed by the parallel and powerful current of opinion that distinguished between wars which, in law, were just and those which were not. That current of opinion is represented by yet another aspect of the Grotian tradition, namely, his denial of the absolute right of war and his consistent differentiation between just and unjust wars. Grotius did not invent that distinction. It was part of the heritage of the Middle Ages; it was fully discussed and adopted by scholastic writers and other forerunners of Grotius. Saint Augustine elaborated in detail the notion of a just war and limited it to action taken for the punishment of wrong-doing and to restoration of property taken away.[3] Isidore of Seville wrote on similar lines in the seventh century. The *Decretum Gratiani* gives elaborate definitions of a just war. In Giovanni da Legnano's *De Bello, De Repraesaliis, et De Duello*, written in 1360, there was

[1] *Thoughts of a Statesman*, ch. ii.
[2] Ibid.
[3] *Quaestionum in Heptateuchen*, lib. vi. 10.

a detailed disquisition on the subject. But it was in the works of the two great scholastic writers, Franciscus de Vittoria[1] and Suarez,[2] that the doctrine of just war—as the only war permissible in law—was developed with a juridical acumen and a moral fervour hardly surpassed by Grotius himself. Like some of their predecessors they held that, because of 'invincible ignorance', a war may be legally just on both sides.[3] They both denied the right to wage war on infidels for reasons of religion only.

In the elaboration of the causes of just war Grotius made no obvious advance upon the already elaborate treatment of the subject by his predecessors. The merit of his own contribution lies in the clarity and in the emphasis with which he treated the subject. For a war to be just there must exist a legal cause for it—a reason which would be recognized by a court of law as a cause of action. As he points out, war begins where judicial settlement ends. It follows that a war undertaken to enforce a claim which 'is not an obligation from the point of view of strict justice'[4] is not a just war. He devotes an entire chapter to an enumeration, by way of example, of various kinds of unjust war.[5] On the other hand, the causes of just wars are limited to defence against an injury either actual or immediately threatening,[6] to recovery of what is legally due, and to inflicting punishment. He definitely excludes wars undertaken in order to weaken a neighbour who is a potential threat to the security of the state. He says, with regard to such a war, in a passage typical of the temper of the work in its challenging rejection of *raison d'état*: 'That the possibility of being attacked confers the right to attack is abhorrent to every principle of equity. Human life exists under such conditions that complete security is never guaranteed to us. For protection against uncertain fears we must rely on Divine Providence, and on a wariness free from reproach, not on force.'[7] He says in another part of the book: 'That defence may be just, it must be necessary; and it cannot be this, except there be clear evidence, not only of the power, but also of the *animus* of the party; and such evidence as amounts to moral certainty.'[8] By way of example he discusses the case of the justice —which he denies—of a war undertaken against a neighbouring state on the ground that it engages in building a fortress or fortifications which might prove a source of danger. Against such apprehension, he says, the

[1] *De jure belli* (about 1541). [2] *Opus de triplici virtute theologica* (1621).

[3] A conclusion rejected by Ayala, *De Jure et Officiis Bellicis et Disciplina Militari Libri III* (1582), but approved by Gentilis, *De Jure Belli* (1589), provided that there is reasonable doubt as to the justice of the war. And see *De Jure Belli ac Pacis*, Book II, ch. xxiii, § xiii.

[4] Book II, ch. xxii, § xvi. [5] Book II, ch. xxii.

[6] Book II, ch. i, § ii. 1; § v; § xvi. In the latter paragraph he permits a state to forestall an act of violence not actually present but threatening from a distance. But even in this case he excludes direct action—which he considers unjust—and limits it to obtaining satisfaction for a delinquency begun but not yet consummated. [7] Ibid., § xvii.

[8] Book II, ch. xxii, § v. 1. (The translation is from Whewell's edition as it seems, on this point, more precise than that in the 'Classics of International Law'.)

proper remedy is to build counter-fortifications, not to resort to arms.[1] The relevant section of Book II[2]—the shortest paragraph in the treatise—consists of one sentence, significant and impressive in its brevity, referring to the causes of war: 'Advantage does not confer the same right as necessity.' He also denies that there is any question of a justifiable war of defence in the case of those who deserved the war waged against them.[3]

But it was in the drawing of the practical consequences from the distinction between just and unjust wars that Grotius went beyond anything taught by his predecessors. This applies not only to the all-important question of neutrality,[4] or to such matters of detail as the rule that a state bound by treaties of alliance with states engaged in war ought to give preference to that engaged in a just war, for 'there is no obligation to undertake unjust wars';[5] that a treaty of alliance is not binding in relation to a state waging an unjust war;[6] or that a state engaged in a just war may, under certain strictly defined conditions, take possession of a place situated in a neutral country;[7] or, though apparently only as a matter of *interna justitia*, with regard to restoration of property taken in an unjust war;[8] or even to the assertion of the right of the belligerent fighting an adversary waging 'a very unjust war' to inflict capital punishment upon those carrying contraband.[9] It applies to the more fundamental question of the duty of the subject to serve in a war which is unjust or doubtful, an aspect of his teaching which is of particular significance in view of the respect—some thought servile respect—with which Grotius treated established authority and with which he discouraged any thought of rebellion. He is emphatic that the subject when ordered to take up arms in a clearly unjust war ought to refrain from doing so.[10] Moreover, after much careful deliberation and weighing of authorities, he considers that the obligation is the same when the justice of the war is doubtful. He admits the dangers of disobedience, but he is content to take the risk: 'For when either course is uncertain that which is the lesser of two evils is free from sin; for if a war is unjust there is no disobedience in avoiding it. Moreover, disobedience in things of this kind, by its very nature, is a lesser evil than manslaughter, especially than the slaughter of many innocent men.'[11] The only concession that he is prepared to make is that in the case of a doubtful war the ruler may impose

[1] Book II, ch. xxii, § v. 2.
[2] Ch. xxii, § vi.
[3] Ibid., ch. i, § xviii.
[4] See below, p. 40.
[5] Book II, ch. xv, § xiii. 1.
[6] Book II, ch. xxv, § iv. He regarded as not permissible military alliances concluded without regard to the cause of the war in which the ally may be involved. Book II, ch. xxv, § ix. 1.
[7] Ibid., § x. 1.
[8] Book III, ch. x, § iii. 1.
[9] Ibid., ch. i, § v. 3.
[10] Book II, ch. xxvi, § iii. 1.
[11] Ibid., § iv. 5; ibid., § iv. 8. With this may be compared the view of Pufendorf, *De jure naturae et gentium libri octo* (1688), Book VIII, ch. i, *in fine*, who points to the dangers of destroying civil sovereignty and advises the citizen to 'leave the supreme sovereign accountable to God for the injustice of his war'.

an extraordinary tax upon those refusing to carry arms.[1] At the same time, in conformity with the view which has remained unchallenged and which is in accordance with the humanitarian character of his treatise, he lays down that the question of the justice or injustice of the war is irrelevant for the purpose of observing the rules of warfare as between the belligerents.[2] Any other rule would add to the inherent evils of war the horrors of unrestrained licence and cruelty accentuated by what must often be an unverified *ex parte* claim to wage a just war.

International law, in the three centuries which followed *De Jure Belli ac Pacis*, rejected the distinction between just and unjust wars. War became the supreme right of sovereign states and the very hall-mark of their sovereignty. To that extent international law was deprived of a reasonable claim to be regarded as law in the accepted sense of the word. The law on the subject has now undergone a fundamental change. War has ceased to be a supreme prerogative of states. The Grotian distinction between just and unjust war is once more part of positive international law. Factors more potent and more irresistibly compelling than the influence of any single writer have had a share in that achievement. Yet, among the imponderables which have worked in that direction, the Grotian tradition occupies a high place.

7. *The Doctrine of Qualified Neutrality.* It followed from the emphasis of the distinction between just and unjust wars that no affirmation of absolute impartiality on the part of neutral states in relation to the state waging an unjust war was to be expected in a legal treatise in which the element of moral obligation was as prominent as in *De Jure Belli ac Pacis*. It is theoretically possible for international law to declare that some wars are illegal and criminal and yet to lay down that the neutral states not involved in the war must act with absolute detachment in relation both to the aggressor and to his victim. The legal consistency of such a system of international law would be questionable; its ethical impropriety would be obvious. In any case such a solution would not have been in keeping with the spirit of *De Jure Belli ac Pacis*. Grotius's view on the subject is expressed tersely in the brief chapter on neutrality entitled 'On those who are of neither side in war'.[3] He says: 'It is the duty of those who keep out of war to do nothing whereby he who supports a wicked cause may be rendered more powerful, or whereby the movements of him who wages an unjust war may be hampered.'[4] It will be noted that these duties do not include the positive obligation to assist actively the state waging a just war. But

[1] Book II, ch. xxvi, § v.
[2] Book III, ch. iv, § iv.
[3] Book III, ch. xvii.
[4] Ibid., § iii. 1. But he counsels impartiality in doubtful cases.

they clearly imply a right to do so. The duty not to hinder may in practice not always be distinguishable from the right to give assistance. There are various passages in the treatise in which Grotius applies in detail that principle of qualified neutrality. Thus he states that the right of passage ought to be granted to a people which is seeking to recover by a just war what is due to it.[1] He is equally emphatic that the right of passage can be refused to a state commencing an unjust war.[2] He is not prepared to attach decisive importance to the fears and even the safety of the state through the territory of which passage is requested. In particular, he says, fear of the ruler against whom a just war is being waged is not a valid reason for refusing passage. 'My right is not extinguished by your fear.'[3]

While in elaborating the distinction between just and unjust wars Grotius was following a centuries-old tradition, in propounding the principle of qualified neutrality he was breaking new ground. As may be surmised from the passages just referred to, he was aware of the dangers in which the application of the doctrine of qualified neutrality involved small states and principalities interested in avoiding any pretext for being dragged into the struggle. Principle seemed to him, in this matter as in others, more important than 'reason of State'. Over a hundred years later Christian Wolff, in a somewhat involved exposition, affirmed the right to neutrality when the justice of the war is doubtful or when it is in the interest of the state to remain neutral, 'for every right of a people by nature should be determined by the purpose of the State'. Yet he had no doubt that by the law of nature it was illegal to give aid to a state waging an unjust war.[4] Vattel followed Grotius closely. In one respect, though subject to an important qualification, he went farther. He says: 'It is lawful and praiseworthy to assist in every way a Nation which is carrying on a just war; and such assistance even becomes a duty for every Nation which *can give it without injury to itself*. But no assistance may be given to one who wages an unjust war.'[5] Again following Grotius, he was also of the opinion that every treaty of alliance is subject to the implied reservation that it is not operative in cases in which the ally wages or is about to wage a war which is manifestly unjust, of which question the other ally is the only judge 'because you owe it no assistance except in so far as its cause is just and it is convenient for you to give it help'.[6] Even Bynkershoek, who impatiently rejected Grotius's view that the character of neutral duties must be determined by considerations of the justice of the war, admitted that the question becomes relevant in the matter of the fulfilment of treaties of alliance.[7] In general, the right

[1] Book II, ch. ii, § xiii. 1. [2] Ibid., § xiii. 4.
[3] Ibid.
[4] *Jus gentium methodo scientifica pertractatum* (1740), § 674.
[5] Op. cit., Book III, ch. vi, § 83. [6] Ibid., § 86.
[7] Op. cit., Book I, ch. ix.

of neutrals to form a judgment on the legal justice of the war waged by belligerents and to adopt discriminatory treatment in accordance with that judgment was generally recognized in the eighteenth century under the influence of Grotius.

The doctrine of qualified neutrality was rejected in the nineteenth century —with perfect logical consistency—by the overwhelming majority of writers. If every war is, in law, just, then neutrality must be an attitude of absolute impartiality. Occasionally writers of authority expressed their disapproval of neutrality thus conceived as being morally intolerable.[1] But that denunciation of neutrality was in fact a condemnation of a system of international law, fully in operation at that time, in which resort to war was an unlimited right of sovereign states.

With the drastic limitation of the right of war as adopted in the Covenant of the League of Nations and in the General Treaty for the Renunciation of War, the law restored the historic foundations of the doctrine of qualified neutrality as taught by Grotius. The Covenant of the League, in permitting neutrality and in obliging the Members to resort to sanctions and other measures of discrimination against the Covenant-breaking state, was, in this respect, based on the principle of qualified neutrality. When in 1940 and 1941 the United States committed itself to a determined departure from the customary and conventional rules of absolute neutrality as they obtained in the nineteenth century, it invoked, among others, the argument that with the general renunciation and condemnation of war as an instrument of national policy, the right, asserted by the founders of international law, to discriminate against the aggressor was fully restored. Grotius's teaching on the subject was adduced in support of the attitude thus adopted.[2]

Under the Charter of the United Nations neutrality is no longer an absolute right. Members of the United Nations are bound, if called upon to do so by a valid decision of the Security Council, to resort to war against a state waging an aggressive, an unjust, war. But it is possible that the call made upon them may fall short of a summons to resort to war. In that case, the principles of qualified neutrality would once more be applicable. It is, of course, highly questionable whether in a system of collective security—such as that set up by the Charter of the United Nations—in which force has been renounced, there is properly room for any neutrality at all, qualified or otherwise. We may be able to appreciate the legal and ethical merits of this aspect of the Grotian tradition—and the service which it has rendered—without holding it applicable in an international society which claims to have made a radical advance along the path both of the prohibi-

[1] See, in particular, Westlake, *International Law*, vol. ii (2nd ed., 1913), p. 90.

[2] See the speech of Attorney-General Jackson on 27 March 1941 (*American Journal of International Law*, 35 (1941), p. 351).

tion of unjust war and of the fundamental obligation to suppress it by collective action.

8. *The Binding Force of Promises.* The denial of the right of war, unless for a cause recognized by law, and the principle of qualified neutrality constitute the main application, with regard to the law of war, of Grotius's rejection of the ideas of reason of State. In the sphere of the law of peace, that same tendency expressed itself most conspicuously in the emphasis which he placed upon the binding force of promises and the obligation of good faith in their fulfilment. The subject is treated at great length in the six chapters of Book II on Promises, on Contracts, on Oaths, on Promises of those holding Sovereign Power, on Public Treaties and Sponsions, and on Interpretation.[1] In addition, the five concluding chapters of the treatise are devoted to the subject of promises and good faith in war.[2] The last exhortation, in the final chapter of the treatise, is an appeal to the sacredness of good faith.[3] To Grotius the obligation to abide by pacts is not only the basis of municipal law and of civil society; it is of the essence of the social contract.[4] Without it the social contract is meaningless.[5] As such, the obligation to keep promises is the principal tenet of the law of nature. It is an obligation which binds the ruler in relation to the contract which he has entered into with his subjects; they derive a clear legal right under it. And this, he adds, 'holds even between God and man'.[6] It is not surprising that to him the binding force of treaties is the basis of international law. They must be kept even in relation to pirates and tyrants, in peace or in war;[7] they may be made, according to the Christian law and otherwise, with infidels,[8] and faith must be kept even with them.[9] He lays down the modern and, in the circumstances, unexceptional rule that promises made during war or for the purpose of terminating a war are valid even if extorted by fear.[10] The reason for this seemingly repulsive qualification is that unless this rule were adopted most wars would be incapable of termination.

This categorical affirmation of the sanctity of promises—even in relation to God Himself—had a pointed meaning at a time when the Pope claimed the right to release rulers from the binding obligation of oaths and treaties,

[1] Chs. xi–xvi.
[2] Book III, chs. xix–xxiii.
[3] Book III, ch. xxv, § vii.
[4] *Proleg.* 15.
[5] This explains why he is prepared to base the right of punishment on implied contract (Book II, ch. xx, § ii. 3).
[6] Book II, ch. xiv, § vi. 2.
[7] Book III, ch. xix, § ii. 1, 2.
[8] Book II, ch. xv, § x. 1.
[9] Book III, ch. xix, § xiii. 1. Although he advises caution in concluding treaties of alliance with infidels, he regards such alliances as permissible and, above all, as binding (Book II, ch. xv, § ii).
[10] Ibid., § xi—unless such duress is, in turn, contrary to the law of nations, as, for instance, in the case of a promise extorted from a captured ambassador (ibid., § xii).

by way of interpretation or express dispensation,[1] and when the view was widely adopted and acted upon that there is no binding force in treaties concluded not only between Christians and infidels but also those between Catholics and Protestants. But its significance goes considerably beyond that. It supplies a scientific basis—that of the law of nature and of the social nature of man—for the 'volitional' law of nations, i.e. international law based on agreement whether expressed in a treaty or implied by custom. In modern terminology, the rule *pacta sunt servanda* is the initial hypothesis of the law of nations. Some prefer to consider it as being in itself of an extra-legal character for the reason that the validity of the ultimate source of legal obligation cannot, logically, be explained in terms of law; Grotius grounded its binding force in the law of nature. As suggested above, the difference is perhaps not so profound as may appear at first sight. What is important is that at a period of European history when the authority of the pledged word of treaties had become a byword—a phenomenon which was destined to become a recurrent phase in international relations—he made it the very pivot of his teaching.[2]

9. *The Fundamental Rights and Freedoms of the Individual.* There is one perplexing aspect of the work of Grotius which appears to be alien to the spirit of his teaching as outlined so far and which calls for careful examination, namely, his attitude to the question of the freedom of the individual in his relation to constituted authority. The importance of this subject is not confined to the field of political theory. In many ways it is closely connected with international law. It has given rise to scornful and impatient reprobation of Grotius's work as a whole. What is the reason for this exception—if an exception it is—to the otherwise uniformly progressive trend of the treatise? On the face of it the record is disillusioning. Grotius justified slavery and claimed to have found support for it in the immutable canons of the law of nature. He rejected the idea of the sovereignty of the people.[3] He denied the right of resistance to oppression by the ruler.[4] He did not see why, if an individual can voluntarily sell himself into slavery, a whole people should not be able to do so collectively. He attributed an irrevocable legal effect not only to collective voluntary submission, but also to conquest. He completed this chain of reasoning by including in his

[1] For numerous examples of such releases see Laurent, *Histoire du droit des gens* (1865), vol. x, pp. 432–9.

[2] It is interesting to note that in his chapter on Observance of Public Agreements (Book II, ch. x) Bynkershoek refers with some disapproval to the numerous exceptions and qualifications, laid down by Grotius, of the binding force of treaties. These exceptions and qualifications, though they may have been abused by others for the purposes of specious pleading, testify to the thoroughness of Grotius's treatment of the subject. See below, p. 49.

[3] Book I, ch. iii, § viii.

[4] See in particular Book I, ch. iv, §§ i–vii.

examples of unjust wars a contest waged by an oppressed people in order to regain its liberty.[1] It is not easy to fit all this into the general pattern of the treatise. The matter becomes even more obscure when we consider the personal circumstances of its author. Here was a refugee who escaped from the sentence of a political court set up by an arbitrary decree. Yet he deprecated resistance to oppressive rule. Here was a Dutchman, the loyal son of a people which half a century before had by force thrown off the yoke of the Spanish oppressor who, at the very moment when *De Jure Belli ac Pacis* was being written, was preparing war against the United Provinces to reimpose upon them the tyranny of alien rule. Yet Grotius considered to be unjust a war waged by an oppressed people for the sake of its freedom.

What is the explanation of these views, so foreign to the spirit of his teaching and to his personal condition? It is true that, writing as he did in a country under an absolute monarch to whom he dedicated the treatise, who bestowed a pension upon him, and from whom he might have expected the favours of remunerative appointment, he could hardly write in the vein of *Vindiciae contra Tyrannos*. It is possible that, in view of the intransigence with which the right of resistance was advocated, both in the latter tract—which appeared in 1579 but which had not by any means fallen into oblivion—and in Hotman's *Franco-Gallia*, published in 1573, he felt it incumbent upon himself to give to the matter a special argumentative emphasis. But this in itself is an inadequate explanation. What is much more to the point is that this frowning upon rebellion and the favouring of authority were in accordance with what were considered to be the essential needs of the times. The horrors of civil war were foremost in the minds of political thinkers. There was not, in this respect, much difference between Hobbes and Bacon on the one side, and Hooker, Gentilis, and Bodin on the other. They discussed in detail the right of resistance; they all rejected it. So, perhaps with less justification, did Pufendorf.[2] At a time of general uncertainty and of loosening of traditional ties of society, national and international, order was looked upon as the paramount dictate of reason. In the period preceding the Thirty Years War the territorial sovereign state which emerged from the dissolution of the feudal system of society on the Continent of Europe had hardly taken over the functions of the feudal lord; the resulting vacuum accentuated the necessity for stability even at the expense of freedom.[3] Considerations of this order must have

[1] Book II, ch. xxii, § xi.

[2] *De jure naturae et gentium*, Book VII, ch. 8, §§ 5, 6.

[3] He says, after stating that by nature all men have the right of resistance in order to ward off an injury: 'As civil society was instituted in order to maintain public tranquillity, the state forthwith acquires over us and our possessions a greater right, to the extent necessary to accomplish this end. The state, therefore, in the interest of public peace and order, can limit that common right of resistance' (Book I, ch. iv, § ii. 1).

weighed heavily with one in whose work the desire for peace was the dominant motive and the ever-recurring theme. This particular feature of Grotius's outlook appears clearly from his unheroic advice given to defeated peoples to yield to fate rather than to engage in a suicidal fight for liberty, for, he says, reason prefers life to freedom.[1] Strange as it may sound, his attitude towards slavery was to a large extent determined by humanitarian considerations. Enslavement of those captured in war was an alternative preferable to the unlimited power, including the right to kill, which, in his view, the customary law of nations and, probably, the law of nature gave to the captor. His treatment of the institution of slavery is permeated throughout by a spirit of charity and mercy.[2]

What is more important than these explanations is the fact that behind the façade of the general disapproval of the right of resistance there lay qualifications so comprehensive as to render the major proposition almost theoretical. Thus, according to Grotius, there is a right of resistance in cases in which the ruler, by virtue of an original or subsequent contract, is responsible to a free people (as was the case in Sparta);[3] against a king who has renounced his authority or has manifestly abandoned it;[4] who attempts to alienate his kingdom (but only so far as is necessary to prevent the transfer);[5] who openly shows himself the enemy of the whole people —an elastic and formidable exception;[6] who attempts to usurp that part of the sovereign power which does not belong to him;[7] and, finally, where the people have reserved the right of resistance in certain cases.[8] These exceptions as laid down by Grotius were relied upon as an authority for the justification of the resistance to and deposition of James II.[9] If Rousseau had concentrated on the reality of these exceptions rather than on the appearance of the general proposition he would have found less reason for vituperation.[10] It is unlikely that one or more of these exceptions did not

[1] Book I, ch. ii, § xxiv. 6. See also ibid., § vi. 5, and ibid., ch. iii, § xxv. 4. Grotius, who in 1643 read *De Cive*, expressed agreement with Hobbes's view on political authority though he was unable to agree with the bases of the Hobbesian argument: 'Librum de Cive vidi, placent quae pro Regibus dixit. Fundamenta tamen quibus suas sententias superstruit, probare non possum. Putat inter homines omnes a natura esse bellum . . .' (*Epistolae quotquot*, 1687, Appendix No. 648).

[2] Book III, chs. vii and xiv.

[3] Book I, ch. iv, § viii.

[4] Ibid., § ix.

[5] Ibid., § x.

[6] Ibid., § xi.

[7] Book I, ch. iv, § xiii.

[8] Ibid., § xiv.

[9] An interesting illustration of this recourse to Grotius will be found, for instance, in an anonymous pamphlet published in 1689 in London by 'A Lover of the Peace of his Country' under the title *The Proceedings of the Present Parliament Justified by the Opinion of the most Judicious and Learned Hugo Grotius; With considerations thereupon. Written for the Satisfaction of some of the Reverend Clergy who yet seem to labour under some Scruples concerning the Original Rights of Kings, their Abdication of Empire, and the People's inseparable Right of Resistance, Deposing, and of Disposing and Settling of the Succession to the Crown.* The author invoked Grotius 'the famous Civilian . . . because of the great Credit and Authority he has obtained in the world, especially amongst the Clergy, and is above all other of his Faculty, most tender of the Rights and Prerogatives of Crowned Heads' (p. 6).

[10] The same applies to the observations of Dr. Figgis on the subject (op. cit., p. 185).

recall to the mind of the reader the various articles of the Dutch Act of Abjuration against Philip of Spain.

Finally, in this connexion we must bear in mind other indications of Grotius's true attitude. Thus it is significant that, notwithstanding his reluctance to sanction recourse to war, he considers as just resort to war to prevent the maltreatment by a state of its own subjects. In such cases, he says, if a ruler 'should inflict upon his subjects such treatment as no one is warranted in inflicting, the exercise of the right vested in human society is not precluded'.[1] This is, on the face of it, a somewhat startling rule, for it may not be easy to see why he permits a foreign state to intervene, through war, on behalf of the oppressed while he denies to the persecuted themselves the right of resistance. Part of the answer is, perhaps, that he held such wars of intervention to be permitted only in extreme cases which coincide largely with those in which the king reveals himself as an enemy of his people and in which resistance is permitted.[2]

However that may be, this is the first authoritative statement of the principle of humanitarian intervention—the principle that the exclusiveness of domestic jurisdiction stops where outrage upon humanity begins. The doctrine of humanitarian intervention has never become a fully acknowledged part of positive international law. But it has provided a signpost and a warning. It has been occasionally acted upon, and it was one of the factors which paved the way for the provisions of the Charter of the United Nations relating to fundamental human rights and freedoms. In that development the teaching of Grotius has some share. Neither must we forget that although he denied—with substantial qualifications—the right of active resistance, he permitted and enjoined the right of passive resistance;[3] that he safeguarded the conscience and the freedom of the individual in such matters as the right to refuse to carry arms in an unjust, and even doubtful, war;[4] and that he championed the cause of such claims of the individual as the right of expatriation, the rights of economic freedom, and the right to share, through a plebiscite, in the decision to transfer part of national territory.[5]

10. *The Idea of Peace.* The tenth—and not the least important—aspect of the Grotian tradition is his pacifism. He does not deny that war is a legal institution. On the contrary, he is at pains to show that war is not inconsistent with the law of nature and with many other kinds of law. There were good reasons—in addition to the recognition of a patent fact—for this initial legitimation of war. It would not be feasible to attempt to

[1] Book II, ch. xxv, § viii. 2. See also ibid., ch. xx, § xl. 1.
[2] See above, p. 45. But this would not apply to the cruel treatment of a minority.
[3] See above, p. 38.
[4] See above, p. 38.
[5] See below, p. 49.

introduce a measure of legal regulation into a relation not recognized by law. A corresponding method suggested itself—and was adopted—with regard to the contents of the rules of warfare. Thus Grotius's treatment of the laws of war seems to be open to the charge that, after setting out to humanize rules of war, he gives the imprimatur of law to rules of pronounced inhumanity.[1] His answer to any such criticism would probably have been that the proper course was not to deny the character of law to practices which apparently had secured a wide degree of acceptance, but to urge a mitigation of their rigours. Ayala went as far as Grotius—and farther—in treating these practices as law, but he did not propose anything in the nature of *temperamenta*.

In general, there breathes from the pages of *De Jure Belli ac Pacis* a disapproval, amounting to hatred, of war.[2] There is nothing in that work reminiscent of the Baconian conception of war as a healthy exercise. Grotius is clear that where the question of legal right is doubtful, a state ought to refrain from war.[3] He proposes various methods of settling disputes, including negotiation[4] and arbitration.[5] He suggests that 'it would be advantageous, indeed in a degree necessary, to hold certain conferences of Christian powers, where those who have no interest at stake may settle the disputes of others, and where, in fact, steps may be taken to compel parties to accept peace on fair terms'.[6] He devotes a whole chapter to 'warnings not to undertake war rashly, even for just causes'.[7] Elsewhere, he distinguishes between justifiable wars, namely, those for which there is a true legal cause, and those in which the law is but a pretext. These latter he describes simply as wars of robbers.[8] He fully approved of the view of St. Augustine that aggressive wars of conquest are nothing but 'wholesale robbery'.[9] And he cited other distinguished authorities in support of the same opinion.[10] It is probable that his persistent striving towards the unity of the Christian Church and the appearance of leanings towards Catholicism[11] were the outcome of the realization that no other basis was as yet possible for the international organization and preservation of peace.

[1] See above, p. 12.

[2] It is the same overriding desire for peace which explains the extraordinary passage in which, with some uneasiness, he elaborates the view that a state may surrender to an enemy an innocent subject in order to avoid a greater danger (Book II, ch. xxv, § iii).

[3] Book II, ch. xxiii, § vi.

[4] Ibid., § vii.

[5] Book II, ch. xxiii, § viii.

[6] Ibid., § viii. 4.

[7] Book II, ch. xxiv.

[8] Ibid., ch. xxii, § iii. 1.

[9] Book II, ch. xxii, § iii. 2.

[10] Book II, ch. i, § i. 3.

[11] There seems to be no warrant for the suggestion that before his death, prior to leaving France on his journey to Sweden, he expressed the desire to become a Roman Catholic. That possibility is discounted by the most judicious of his biographers: see De Bourigny, *The Life of the Truly Eminent and Learned Hugo Grotius* (translation from the French, 1754), pp. 300 ff. See also Hanshagen in *Zeitschrift für Völkerrecht*, 23 (1939), pp. 13–48, and, in particular, the illuminating Preface of Schulte to Broere's *Hugo Grotius' Rückkehr zum katholischen Glauben* (1871). However, the legend of Grotius's Catholicism dies hard. See, e.g., Pastor, *Geschichte*

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11. *The Tradition of Idealism and Progress.* The pacifist strain which runs through the entire work of Grotius is only one feature of the more general aspect—the last to be here considered—of the Grotian tradition, namely, what may not inappropriately be called the tradition of progress and idealism. He initiated or gave his support to progressive ideas in various fields in the sphere of international relations. He was one of the first to assist the cause of international co-operation in the suppression of crime by urging extradition of criminals as a matter of legal duty.[1] He did more than any of the other founders of international law in developing the theory and in elucidating the practice of diplomatic immunities. He supplied the basis of the modern law of state responsibility founded on fault as distinguished from absolute liability[2] and thus helped to displace the indiscriminating and anarchic practice of reprisals as a normal means of redressing grievances. He urged, and laid down as a rule of law, the principle of freedom of navigation on international rivers and canals.[3] His share in the evolution of the principle of the freedom of the sea needs no elaboration. In all these matters his teaching became part of international practice, wholly or in part. In others, although it has remained a mere postulate of reason, it is not without significance.

Thus in matters of economic freedom he spoke the language of uncompromising free trade expressed in terms of legal right. Men are entitled to obtain things without which life cannot comfortably be lived. And although this is an imperfect right inasmuch as the owner retains the power of disposition, no obstacles to the free acquisition of necessaries of life must be raised by 'law or by conspiracy'.[4] To do that, he says, quoting Ambrose, is 'to separate men from relation with their common parent, to refuse fruits freely produced for all, and to do away with the community of life'.[5] He reiterates that all men have the right to buy such things at a fair price unless, as in time of extreme scarcity of grain, they are needed by those from whom they are sought'. As if in anticipation of some

der Päpste, vol. xiii (1929), p. 783. The source of the belief, occasionally expressed, that Grotius was converted to Catholicism lies probably in the fact that much of his theological doctrine was in the nature of an approximation to or, at least, of a sympathetic understanding of the Catholic point of view. To what extent that tendency was, in turn, due to his desire to assist in bringing about the unity of the Christian Church must remain a matter of conjecture. In any case, it was that practical problem which constituted the main preoccupation of his life from the time that he entered the public service of his own country till his death. That cause he served with a sustained fervour and ability which reveal a stature more impressive than that of an essentially academic person who had never grown into full practical maturity—a picture presented by some biographers. See on this aspect of his life: Krogh-Tonning, *Hugo Grotius und die religiösen Bewegungen seiner Zeit* (1904); Schlüter, *Die Theologie des Hugo Grotius* (1919); Wernle, *Der schweizerische Protestantismus im XVIII. Jahrhundert* (1922), vol. i, pp. 471 ff. See also von Luden, *Hugo Grotius nach seinen Schicksalen und Schriften dargestellt* (1806), and Knight, *The Life and Works of Hugo Grotius* (1925), pp. 245–90.

[1] Unless the state of refuge itself chooses to mete out punishment (Book II, ch. xxi, §§ iii, iv. 3).

[2] Book II, ch. xvii, § 20; ch. xxi, § 2.

[3] Book II, ch. ii, § xiii.

[4] Book II, ch. ii, § xviii.

[5] Ibid.

modern monopolistic practices, he inquired, in this connexion, whether it is permissible for one people to make an agreement with another to sell to it exclusively products which do not grow elsewhere. He thought this permissible and not inconsistent with the law of nature provided the latter was prepared to re-sell at a fair price.[1]

It will be noted that these various claims are not postulates of mere ideal justice. They figure in the part of the treatise which is concerned with the causes of war—one of which is 'injury actually received',[2] 'an injury to that which actually belongs to us'.[3] He was clearly in advance of his time when he urged that refugees driven from their homes have the right to acquire permanent residence in another country provided they submit to the government in authority;[4] that deserted and barren portions of national territory be given to immigrants who ask for it, and that they are entitled to take possession, subject to the sovereignty of the original people, of uncultivated land;[5] that a state is bound to grant freedom of passage through its territory to a people which has been forced to leave its country and is seeking unoccupied lands, or desires to carry on commerce with a distant nation;[6] that freedom of passage for the purpose of carrying on commerce extends, as a matter of right, not only to persons but also to merchandise;[7] and that such freedom of passage includes freedom from taxation unless in return for services rendered.[8] He urged with emphasis the right of the individual to expatriate himself from his country of origin,[9] and he acknowledged the right of self-determination to the extent of requiring the consent of the population to the transfer of national territory.[10]

Some of these proposals appear to be chimerical; others have been partly adopted in practice. But they all illustrate the temper of the treatise and explain much of its attraction throughout the centuries. There is about it the atmosphere of strong conviction, of reforming zeal, of moral fervour. These qualities were typical of Grotius himself. This does not mean that the argument in *De Jure Belli ac Pacis* is not often specious and involved. Some of the apparently tortuous character of his exposition is explained by the fact that elaborate qualifications are often of the essence of a conscientious presentation of the legal position. Thus Grotius's detailed treatment of the exceptions to the binding force of promises—a subject as to which his integrity was above suspicion—elicited some caustic remarks from Bynkershoek on the ground that it was abused for the purpose of denying in practice the validity of treaties.[11] Yet this is clearly one of the

[1] Book II, ch. ii, § xxiv.
[2] Ibid., § i.
[3] Ibid.
[4] Ibid., § xvi.
[5] Ibid., § xvii.
[6] Ibid., § xiii. 1.
[7] Ibid., § xiii. 5.
[8] Book II, ch. ii, § xiv.
[9] Ibid., ch. v, § xxiv.
[10] Ibid., ch. vi, § iv.
[11] See above, p. 43, n. 2.

cases in which a simple statement of the legal position may be neither convincing nor accurate. The same applies to other examples of apparent casuistry as, for instance, to the section entitled 'The question whether a war may be just from the viewpoint of both parties, with many qualifications',[1] or to his submission that although a belligerent must not resort to assassination he may accept an offer to that effect,[2] or that though waters must not be poisoned they may be polluted.[3] Some of the tortuousness of the argument must be put to the account of the anxiety not to offend religious feeling. Thus the secularization of the law of nature and the assertion of its supremacy over God Himself was hedged round by highly strained pieces of casuistry such as that if God should command a person to be killed this would not render murder lawful, but that the act having been commanded by God, the Supreme Lord of Life, it would cease to be murder.[4] His efforts to reconcile the apparent denial of the right of resistance with a measure of popular sovereignty have already been noted.[5] Although he considered the contract between subject and king to be binding upon the latter, he was of the view that the contract cannot be enforced.[6] Neither was he invariably above altering his views in deference to the changed political situation—witness the modification in *De Jure Belli ac Pacis* of the rigidity of the principle of the freedom of the seas as advocated in *Mare Liberum*.[7] And examples may be found of straining the meaning of an event to fit a purpose, as in the suggestion that the citizens of Rome are inheritors of the Roman Empire—a piece of special pleading which

[1] Book II, ch. xxiii, § xiii. 1.
[2] Book III, ch. iv, § xviii.
[3] Ibid., §§ xvi, xvii.
[4] Book I, ch. i, § x. 6.
[5] See above, p. 45.
[6] Book II, ch. xiv, § vi. 2. This mixture of evasiveness and elaboration in the matter of the mutual rights of the ruler and the subject is, of course, typical of the age. See, e.g., the way in which Pufendorf set out to prove that supreme authority was not necessarily unlimited (as summarized by Gierke, *Natural Law and the Theory of Society*, 1500–1800 (Barker's translation, 1934), vol. i, pp. 142, 143).
[7] Probably these modifications are not so far-reaching as appears at first sight. The sea, he says, cannot be appropriated. However, not inconsistently with the reason for the freedom of the sea, namely, that it cannot be physically occupied, Grotius holds that part of the sea can be acquired by him who holds the shore on both sides as in the case of bays or straits 'provided that the part of the sea in question is not so large that, when compared with the land on both sides, it does not seem a part of them' (Book II, ch. iii, § viii). This applies, generally, by the law of nature to parts of the sea which are shut in by land (ibid., § x. 1–2)—although, in this as in other respects, 'universal customary law, by a kind of common understanding', may prohibit what is permitted by the law of nature (ibid., 3). Moreover, such possession of parts of the sea must not impede unarmed and innocent passage (ibid., § xii). He devotes a long section, backed by numerous authorities, to showing that although ownership over the sea cannot be acquired, that limitation does not apply to jurisdiction in the nature of *imperium*. 'Ut autem solum imperium in maris partem sine alia proprietate occupatur, facilius potuit procedere: neque arbitror, jus illud gentium de quo diximus obstare' (ibid., § xiii. 1). He does not explain the nature of the distinction, for this purpose, between *proprietas* and *imperium*. However, the illustrations which he adduces of the consequences of such *imperium* suggest that they merely embrace such rights as taxing foreign shipping in order to obtain compensation for expenses incurred in connexion with protecting navigation and making it safe by providing lighthouses and buoying shoals (ibid., § xiv).

could be used as a link in the argument in favour of the unity of the Church within the general framework of Catholicism.[1]

These intrusions of opportunism and realism did not decisively influence the character of *De Jure Belli ac Pacis*. But they are symbolic of the perennial problem with which the science of international law has been confronted almost from the outset. It has been exposed to the inducement to supply a rationalization of inferior and irrational practices; to confuse, in the name of realism, the function of chronicling events with that of a critical exposition of rules of conduct worthy of the name of law; to furnish a philosophy of the second best; and to represent the transient manifestations of immaturity and anarchy in international relations as resulting necessarily and permanently from the nature of states the mutual relations of which, it is said, may be regulated by voluntary co-operation but not by a rule of law imposed and enforced from above. Grotius did not succumb to that tendency. This fact explains much of the influence which he has wielded. For, in the history of political ideas and human progress, it will be found that the attraction of the short cuts of sound realism is matched—and surpassed—by the appeal to faith and to principle.

These then are the principal features of what has here been called the Grotian tradition in international law. They may be conveniently enumerated by way of conclusion. They are: the subjection of the totality of international relations to the rule of law; the acceptance of the law of nature as an independent source of international law; the affirmation of the social nature of man as the basis of the law of nature; the recognition of the essential identity of states and individuals; the rejection of 'reason of State'; the distinction between just and unjust war; the doctrine of qualified neutrality; the binding force of promises; the fundamental rights and freedoms of the individual; the idea of peace; and the tradition of idealism and progress. Some of these elements of the Grotian tradition have now become part of the positive law; others are still an aspiration. But they all explain why Grotius's work has remained an abiding force and not merely an episode, however important, in the literature of international law. They explain why writers and statesmen have turned to Grotius not only as a source of evidence of the law as it is, but also as a well-spring of faith in the law as it ought to be. Grotius did not create international law. Law is not made by writers. What Grotius did was to endow international law with unprecedented dignity and authority by making it part not only of a general system of jurisprudence but also of a universal moral code. To many, indeed, it may appear that *De Jure Belli ac Pacis* is more a system of ethics applied to states than a system of law. This would not inevitably imply a

[1] Book II, ch. ix, § xi. And see above, p. 47.

condemnation of the work. For it may be held that at that time—as, indeed, at any time—it was important that the relations of states should be conceived and taught as part of ethics as well as part of law. Grotius's great merit is that he performed both tasks in one work. This combination of functions resulted in much methodological confusion offensive to the purist, who is in danger of forgetting that in the seventeenth century eclecticism was as important as systematic accuracy. *De Jure Belli ac Pacis* is pre-eminently a treatise which must be judged not by reference to its method, but by its influence on the doctrine and on the practice of the law of nations. It satisfied the craving, in the jurist and the layman alike, for a moral content in the law. In stressing and, on the whole, maintaining the distinction between law and morality it vindicated the place of the law of nations in legal science. Last—but not least—it became identified with the idea of progress in international law.

These considerations may help to answer, to a large extent, the question whether *De Jure Belli ac Pacis* is still a proper medium of study and instruction in international law. The reply is clearly in the negative if what we have in mind is assistance in the search for a legal rule which we may assume an international court would now apply in a case before it. From this point of view most text-books and treatises are obsolete. But *De Jure Belli ac Pacis* may nevertheless have its uses not only for the legal historian or for the writer or advocate anxious to embellish a quotation or strengthen an argument by reference to a passage from Grotius. It cannot be rewritten or modernized by the simple device of omitting quotations from the ancient authorities.[1] To do that, as Whewell did in the abridged version of his translation, is to run the risk of depriving the treatise of one of its characteristic features by reducing it to a body of dry propositions unsupported by the ripe wisdom of antiquity. It is not necessary for the average student to examine the whole of *De Jure Belli ac Pacis*, which ought to disappear as a mere ornamental item in reading-lists. But selected portions of the treatise may still be read with advantage as an instance of juridical method typical of the seventeenth century; as a fairly accurate statement, on any given subject, of international law in its formative period; and, above all, as expressive of the various aspects of the Grotian tradition. However, the significance of the subject transcends that of one item in the educational curriculum of international lawyers. In gaining an understanding of the Grotian tradition as a whole—this has been the main object of the present article—we may not only fathom the secret of its influence upon generations of scholars and men of affairs. We may, and that is no less important, obtain an insight into the persistent problems of international

[1] For an interesting discussion of this and cognate questions see Sandifer in *American Journal of International Law*, 34 (1940), pp. 459–72.

law in the past, in the present, and, probably for some long time to come, in the future. It is a measure of the greatness of the work of Grotius that all these questions should have found a place in his teaching and that he should have answered them in a spirit upon the acceptance of which depends the ultimate reality of the law of nations as a 'law properly so called'.[1]

[1] For an appreciation of some aspects of the teaching of Grotius in relation to the development of international law see Bourquin in *Revue de droit international et de législation comparée*, 3rd ser., vol. vii (1926), pp. 86–125; Vlugt in *Académie de droit international, Recueil des Cours*, 1925 (ii), pp. 397–506. See also Hearnshaw, *Some Great Political Idealists of the Christian Era* (1937), pp. 81–104; and Pound, *Philosophical Theory and International Law*, in *Bibliotheca Visseriana*, 1 (1923), pp. 71–90. And see Klee, *Hugo Grotius und Johannes Selden* (1946).

It appears from the notes left by Lord Acton that he considered Grotius a pivotal figure in the history of freedom conceived as the emancipation of human thought from the shackles of theological dogma and the ideas of reason of state. (The relevant bundle of notes—No. 5434—is part of a large collection in Lord Acton's handwriting deposited in the Cambridge University Library. I am indebted to my son, Mr. E. Lauterpacht, of Trinity College, for drawing my attention to them.) Lord Acton seems to have believed that some of Grotius's influence may have been due to the fact that his competence and reputation extended to the fields both of theology and of law. He says: 'The literature of divines had little influence on the world. The jurists . . . walked independently of theology. To bring the ideas of the divines and of civil law into combination the man was required who was as much a divine as a jurist. This was Grotius' (5434/76). Lord Acton remarks that before Grotius most writers were touched with denominational prejudices. Grotius while not an enemy of religion—he was deeply religious—was independent of any Church. He made morals independent of religion and, therefore, above religion. He made them a test of the best religion. His object was to advocate principle rather than principles; not to promote certain truths, but to see that truth should prevail over interest (5434/45, 53, 88). Elsewhere Lord Acton remarks on 'Grotius's notion of a code distinct from the moral law, yet obliging conscience; not the work of the Church, but requiring the obedience of the Church; not given by God, but claiming to exist even if there is no God, and to precede the law that He gives; taking away the results of 1,000 years of Christian civilization' (5434/104). He compares Grotius with Copernicus as the herald of a new scientific era. Grotius's attitude, discussed above (pp. 30–5), to the ideas of 'reason of State' may have prompted the observation, intimately in keeping with Acton's teaching, that 'there is no state so sacred or so necessary that it must not be sacrificed to a more universal obligation and a higher cause' (5434/99).

There are repeated references in Lord Acton's notes to the great contribution of Grotius to the secularization of the law of nature and of political thought generally. (See above, pp. 8, 50, on Grotius's submission, rendered more emphatic by its verbal qualifications, that the law of nature would be valid even if there were no God.) The importance of that contribution is not affected by the circumstance that actually Grotius was not the first to assert the independence of the law of nature. See Maitland's note in Gierke, *Political Theories of the Middle Age* (Maitland's translation, 1900), p. 174, quoting from Gierke's *Johannes Althusius* that 'already medieval schoolmen had befriended the saying, usually attributed to Grotius, that there would be a law of nature, discoverable by human reason and absolutely binding, even if there were no God'. In that work Gierke cites a passage from Gabriel Biel's *Collectorium Sententiarum* (1501) strikingly reminiscent of Grotius's phraseology. And see above, p. 8, as to Suarez. See also Professor Hazeltine's Introduction to Ullmann, *The Medieval Idea of Law* (1946), p. xxx, where he refers to Hemmingius, *De lege naturae apodictica methodus* (1562), Q. 9, as yet another example of the attempts, prior to Grotius, to emancipate jurisprudence from theology.